

SUNSHINE COAST INSURANCE SERVICES INC
101-985 GIBSONS WAY
GIBSONS BC V0N 1V8

KEYSTONE POSSIBILITIES LTD.
WATTS PT 1 PO BOX 1548
SQUAMISH BC V8B 0B1



Call.

SUNSHINE COAST INSURANCE SERVICES INC
at 604-886-8787



Click.

cooperators.ca

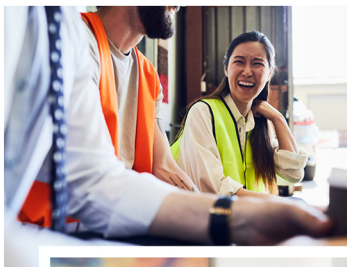


Come in.

SUNSHINE COAST INSURANCE SERVICES INC
101-985 GIBSONS WAY
GIBSONS, BC V0N 1V8

Your **business insurance** policy

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Thank you for choosing Co-operators.

Please review your documents carefully and if you have questions, contact us.
We're here to help.

The policy contains a clause that may limit the amount payable.

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You can count on Co-operators for expert advice. As our valued client, you can enjoy the peace of mind that comes from complimentary access to:

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INSURED

KEYSTONE POSSIBILITIES LTD.
WATTS PT 1 PO BOX 1548
SQUAMISH BC V8B 0B1

Business Insurance Policy No. 4002495498

Underwritten by Co-operators General Insurance Company
(Hereinafter called the Insurer)

This Certificate of Insurance summarizes your coverages, and shows your policy's effective and expiry dates.

Any premium reimbursement issued by Co-operators General Insurance Company, during the term of your policy, will be made payable to the payor on file, as per the information provided by the insured.

For more information on your property and liability coverages, refer to the Your Coverages section of this policy. For information on your policy coverages and discounts, refer to cooperators.ca.

EFFECTIVE DATE

July 10, 2025 at 12:01 AM

EXPIRY DATE

July 10, 2026 at 12:01 AM

All times are local times at the postal address of the Insured.

Questions?

SUNSHINE COAST INSURANCE SERVICES INC at
604-886-8787
101-985 GIBSONS WAY
GIBSONS, BC V0N 1V8

Insurance is provided for only those locations, operations, coverages and limits specifically indicated herein.

The following forms are applicable to all Property and Loss of Income coverages on this policy:

Insuring Agreements and Common Definitions, Exclusions and Conditions Forms (as per Province)

Amendment to Policy and Statutory Conditions

Communicable Disease Exclusion

Operations: Building construction, residential - 1 or 2 family dwellings, incl. renovation/repair

Location: PO BOX 1548, SQUAMISH, BC V8B 0B1

	CO-INSURANCE	DEDUCTIBLE	LIMIT
Miscellaneous Property			
Installation Floater Broad Form		\$1,000	\$5,000
Crime			
Crime Standard Conditions Form			
Service Blanket Bond Form		\$1,000	\$10,000
Liability			
Commercial General Liability Policy - Occurrence Basis			

(continued)

The policy contains a clause that may limit the amount payable.

	CO-INSURANCE	DEDUCTIBLE	LIMIT
Bodily Injury and Property Damage Liability			
Each Occurrence Limit			\$5,000,000
Products-Completed Operations Aggregate Limit			\$5,000,000
Each Occurrence Deductible - Property Damage		\$1,000	
Personal and Advertising Injury Liability			\$5,000,000
Medical Expense Limit - Any One Person			\$25,000
Tenants' Legal Liability Limit - Any One Premises			\$5,000,000
Each Occurrence Deductible - Property Damage		\$1,000	
Employment Practices Liability - Wrongful Employment Act		\$1,000	\$10,000
Endorsement			
Limited Pollution Liability Endorsement		\$2,500	\$1,000,000
Damage to Underground Property Warranty Endorsement			
Underground Property Damage Deductible Endorsement		\$2,500	
Non-owned Automobile Liability			\$2,000,000
Contractual Liability Endorsement			
Excluding Long Term Leased Vehicle Endorsement			

	CO-INSURANCE	DEDUCTIBLE	LIMIT
Cyber Guard			
Privacy Breach Expense Form			
Aggregate Limit			\$25,000
Privacy Breach Expenses			\$25,000
Business Interruption			\$25,000
Waiting Period: 24 Hours			
Non-Taxable Premium			\$1,249.00
Taxable Premium			\$0.00
Total Policy Cost			\$1,249.00
Minimum Retained Premium			\$313.00

Discounts

Your policy includes discounts for:

Claims Free



Robert Wesseling
President and Chief Executive Officer
Authorized Signature of Insurer



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INSURING AGREEMENTS AND COMMON DEFINITIONS, EXCLUSIONS AND CONDITIONS FORM - BRITISH COLUMBIA

(Applicable to the Province of British Columbia)

Applicable to all Property and Business Interruption coverages of this Policy.

Words and phrases in quotation marks have special meaning as defined in the Common Definitions.

I. Insuring Agreements

The Insurer, in consideration of payment of the premium, in reliance upon and subject to the statements in the application made a part of this Policy and subject to all the terms and conditions of this Policy, the “Certificate of Insurance” and the Forms, Schedules and Endorsements attached, agrees with the Named Insured as follows:

A. Indemnity Agreement

In the event that insured property is lost or damaged during the policy period by an insured peril, the Insurer will indemnify the Insured against the direct loss or damage so caused to an amount not exceeding whichever is the least of:

1. the value of the lost or damaged property as determined in the applicable Form or Endorsement;
2. the interest of the Insured in the property;
3. the Limit of Insurance specified in the “Certificate of Insurance” for the lost or damaged property.

The inclusion of more than one person or interest shall not increase the Insurer’s liability.

B. Extensions of Coverage

The following extensions of coverage shall not increase the Limits of Insurance stated in the “Certificate of Insurance” and are subject to all the conditions of this Form.

1. **Removal:** If any of the insured property is necessarily removed from the “Premises” or “Project Site” to prevent loss of or damage to or further loss of or damage to such property, that part of the insurance under this Policy that exceeds the amount of the Insurer’s liability for any loss already incurred shall, for 30 days only, or for the unexpired term of the Policy if less than 30 days, insure the property removed and any property remaining at the “Premises” or “Project Site” in the proportions which the value of the property in each of the locations bears to the value of the property in them all.
2.
 - a. **Debris Removal:** The Insurer will indemnify the Insured for expenses incurred in the removal from the “Premises” or “Project Site” of debris of the insured property, occasioned by loss of or damage to such property, for which loss or damage insurance is afforded under this Policy.
The amount payable under this extension shall not exceed 25% of the sum of:
 - i. the total amount payable for the direct loss of or damage to insured property; and
 - ii. the amount of the applicable deductible.
 - b. **Removal of Windstorm Debris:** The Insurer will indemnify the Insured for expenses incurred in the removal of debris or other property which is not insured by this Policy but which has been blown by windstorm upon the “Premises” or “Project Site”.

Extensions of coverage 2. a. and 2. b. do not apply to costs or expenses:

1. to “Clean Up” “Pollutants” from land or water; or
2. for testing, monitoring, evaluating or assessing of an actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of “Pollutants”.

Debris removal expense shall not be considered in the calculation of the value as determined in the applicable Form or Endorsement for the purpose of applying Co-insurance.

II. Common Exclusions

A. War Exclusion

This Policy does not insure against loss or damage caused by, related to, directly or indirectly, in whole or in part, by war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, rebellion, revolution, insurrection or military power. This exclusion applies whether or not there are one or more other causes or events (whether covered or not) that contribute concurrently or in any sequence to the occasioning of the loss or damage.

B. Nuclear Exclusion

This Policy does not insure against loss or damage caused by, related to, directly or indirectly, in whole or in part:

1. By any nuclear incident (as defined in the Nuclear Liability Act or any other nuclear liability act, law or statute, or any amending law) or nuclear explosion, except for ensuing loss or damage which results directly from fire, lightning or explosion of natural, coal or manufactured gas;
2. By contamination by radioactive material.

This exclusion applies whether or not there are one or more other causes or events (whether covered or not) that contribute concurrently or in any sequence to the occasioning of the loss or damage.

C. Bylaw Exclusion

This Policy does not insure against loss or damage caused by, related to, directly or indirectly, in whole or in part, arising in consequence of or contributed to by the enforcement of any bylaw, regulation, ordinance or law regulating zoning or the demolition, repair or construction of buildings or structures, which bylaw, regulation, ordinance or law makes it impossible to repair or reinstate the property as it was immediately prior to the loss.

D. Data and Cyber Exclusion

Notwithstanding any provision to the contrary within this policy or any endorsement thereto, this policy excludes all loss, damage, liability, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with:

1. any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any “data”, including any amount pertaining to the value of such “data”.
2. any loss of, alteration of, or damage to or a reduction in the functionality, availability or operation of a “computer system”, except as follows;

Subject to all other terms, conditions and exclusions contained in this policy, this policy will insure direct physical loss of or damage to property insured under the policy and any “time element loss” directly resulting therefrom, provided this policy insures for any “time element loss”, where such direct physical loss of or damage to property insured is directly caused by any of the following perils, provided these perils are insured by this policy and not otherwise excluded:

- a. fire,
- b. lightning,
- c. explosion,
- d. aircraft or vehicle impact,
- e. falling objects,

- f. windstorm,
- g. hail,
- h. tornado,
- i. cyclone,
- j. hurricane,
- k. earthquake,
- l. volcano,
- m. tsunami,
- n. flood,
- o. freeze,
- p. weight of snow.

E. Pollution Exclusion

This Policy does not insure against:

1. loss or damage caused by, related to, directly or indirectly in whole or in part, by any actual or alleged spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "Pollutants", nor the cost or expense of any resulting "Clean Up". This exclusion does not apply:
 - a. if the spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "Pollutants" is directly caused by a peril not otherwise excluded in this Policy; or
 - b. to loss or damage caused directly by a resultant peril not otherwise excluded in this Policy;
2. cost or expense for any testing, monitoring, evaluating or assessing of an actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "Pollutants".

F. Fungi and Spores Exclusion

This Policy does not insure against:

1. loss or damage caused by, related to, directly or indirectly, in whole or in part, by any "Fungi" or "Spores". This exclusion does not apply:
 - a. if the "Fungi" or "Spores" are directly caused by a peril not otherwise excluded in this Policy; or
 - b. to loss or damage caused directly by a resultant peril not otherwise excluded in this Policy;
2. the cost or expense for any testing, monitoring, evaluating or assessing of "Fungi" or "Spores".

G. Terrorism Exclusion

This Policy does not insure loss or damage caused by, related to, directly or indirectly, in whole or in part, by "Terrorism" or by any activity or decision of a government agency or other entity to prevent, respond to or terminate "Terrorism". This exclusion applies whether or not there are one or more other causes or events (whether covered or not) that contribute concurrently or in any sequence to the occasioning of the loss or damage. If any portion of this exclusion is found to be invalid, unenforceable or contrary to law or statute, the remainder shall remain in full force and effect.

III. Common Definitions

Wherever used in this Policy:

- A. **“Certificate of Insurance”** means the page(s) of your Policy which provide the specifics of your insured coverages and limits including any supplementary pages or schedule of coverages attached thereto applicable to this Policy subject to the terms and conditions of this Policy.
- B. **“Clean Up”** means the removal, containment, treatment, decontamination, detoxification, stabilization, neutralization or remediation of “Pollutants”, including testing which is integral to any of these processes.
- C. **“Computer system”** means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.
- D. **“Data”** means representations of information or concepts, in any form.
- E. **“Fire Protective Equipment”** includes tanks, watermain, hydrants, valves and any other apparatus whether used solely for fire protection or jointly for fire protection and for other purposes, but does not include:
 - 1. branch piping from a joint system where such branches are used entirely for purposes other than fire protection;
 - 2. any watermain or appurtenances located outside of the “Premises” or “Project Site” and forming a part of the public water distribution system;
 - 3. any pond or reservoir in which the water is impounded by a dam.
- F. **“Fungi”** includes, but is not limited to, any form or type of mould, yeast, mushroom, mildew, wet or dry rot or bacteria, whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any “Fungi” or “Spores” or resultant mycotoxins, allergens or pathogens.
- G. **“Pollutants”** means any solid, liquid, gaseous or thermal irritant or contaminant, including, but not limited to, odour, vapour, fumes, acids, alkalis, chemicals and waste. Waste includes, but is not limited to, materials to be recycled, reconditioned or reclaimed.
- H. **“Premises”** means the entire area within the property lines and areas under adjoining sidewalks and driveways at:
 - 1. each location described in the “Certificate of Insurance”;
 - 2. Temporary Locations and any Newly Acquired Location, if covered by this Policy; and in or on vehicles within 100 metres (328 feet) of such locations.
- I. **“Project Site”** means the site of the project described in the “Certificate of Insurance”.
- J. **“Specified Perils”** means:
 - 1. **Fire or Lightning**
 - 2. **Explosion:** Except with respect to the explosion of natural, coal or manufactured gas, there shall in no event be any liability for loss or damage caused by explosion, rupture or bursting in or of the following property owned, operated or controlled by the Insured:
 - a. i. the portions containing steam or water under steam pressure of all boilers generating steam, and piping or other equipment connected to said boilers and containing steam or water under steam pressure;
 - ii. piping and apparatus or their parts normally containing steam or water under steam pressure from an external source and while under such pressure;
 - iii. the combustion chambers or fire boxes of steam generating boilers of the chemical recovery type and the flues or passages which conduct the gases of combustion from them;

- iv. smelt dissolving tanks;
- b. other vessels and apparatus, and connected pipes, while under pressure, or while in use or in operation, provided their maximum normal internal working pressure exceeds 103 kilopascals (15 pounds per square inch) above atmospheric pressure except that liability is specifically assumed for loss or damage resulting from the explosion of manually portable gas cylinders;
- c. moving or rotating machinery or parts of same when such loss or damage is caused by centrifugal force or mechanical breakdown;
- d. any vessels and apparatus and connected pipes while undergoing pressure tests, but this exclusion shall not apply to other insured property that has been damaged by such explosion;
- e. gas turbines.

The following are not explosions within the intent of this section:

- 1. electric arcing or any coincident rupture of electrical equipment due to such arcing;
 - 2. bursting or rupture caused by hydrostatic pressure or freezing;
 - 3. bursting or rupture of any safety disc, rupture diaphragm or fusible plug.
3. **Impact by Aircraft, Spacecraft or Land Vehicle:** The terms Aircraft and Spacecraft include articles dropped from them.
- There shall in no event be any liability for cumulative damage or for loss or damage:
- a. caused by land vehicles belonging to or under the control of the Insured or any of the Insured's employees;
 - b. to aircraft, spacecraft or land vehicles causing the loss;
 - c. caused by any aircraft or spacecraft when being taxied or moved inside or outside of a "Building".
4. **Smoke:** means smoke due to a sudden, unusual and faulty operation of any stationary furnace. There shall in no event be any liability for any cumulative damage.
5. **Leakage from "Fire Protective Equipment":** means:
- a. the leakage or discharge of water or other substance from;
 - b. the collapse of; or
 - c. the rupture due to freezing of;
- "Fire Protective Equipment" for the "Premises", "Project Site" or for adjoining structures.
6. **Windstorm or Hail:** There shall in no event be any liability for loss or damage:
- a. to the interior of the "Building" or to "Contents" unless damage occurs concurrently with and results from an aperture caused by windstorm or hail;
 - b. directly or indirectly caused by any of the following whether driven by wind or due to windstorm or not: snow-load, ice-load, tidal wave, tsunamis, high water, overflow, flood, waterborne objects, waves, ice, land subsidence, landslide.
- K. **"Spores"** includes but is not limited to, one or more reproductive particles or microscopic fragments produced by, emitted from or arising out of any "Fungi".
- L. **"Terrorism"** means an ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.

M. “Time element loss” means business interruption, contingent business interruption or any other consequential losses.

IV. Policy Conditions

Where the terms and conditions of this Policy, the “Certificate of Insurance” and the Forms, Schedules and Endorsements attached thereto are in conflict with the applicable Provincial statutes, the interpretation most favourable to the Insured shall prevail.

A. Subrogation

The Insurer, upon making any payment or assuming liability for payment under this Policy, shall be subrogated to all rights of recovery of the Insured against others and may bring action to enforce such rights.

All rights of subrogation are waived against any corporation, firm, individual or other interest with respect to which insurance is provided by this Policy.

Where the net amount recovered, after deducting the costs of recovery, is not sufficient to provide a complete indemnity for the loss or damage suffered, that amount shall be divided between the Insurer and the Insured in the proportion in which the loss or damage has been borne by them respectively.

Any release from liability entered into by the Insured prior to loss shall not affect the right of the Insured to recover.

B. Enhancement Clause

If the Insurer in its sole discretion elects to broaden coverage under this Policy without any additional premium during the policy period, the broadened coverage will immediately apply to this Policy.

C. Recovery by Innocent Persons

If a contract contains a term or condition excluding coverage for loss or damage to property caused by a criminal or intentional act or omission of an Insured or any other person, the exclusion applies only to the claim of a person

1. whose act or omission caused the loss or damage,
2. who abetted or colluded in the act or omission,
3. who
 - a. consented to the act or omission, and
 - b. knew or ought to have known that the act or omission would cause the loss or damage, or
 - c. who is not a natural person

provided that coverage shall only apply if the insured

- i. co-operates with the insurer in respect of the investigation of the loss, including, without limitation, by submitting to an examination under oath, if requested by the insurer, and
- ii. produces for examination, at such reasonable place and time as is designated by the insurer, all documents that relate to the loss in addition to those required by the contract.

Nothing in the above paragraph allows an insured to recover more than that insured's proportionate interest in the lost or damaged property.

D. Examination Under Oath

After a loss which may be insured under this policy, the Insured shall, upon the Insurer's request:

1. submit to an examination under oath, and produce for the examination, at a reasonable place and time as designated by the Insurer, all documents in the Insured's possession or control that relate to the matters in question, and permit extracts and copies to be made;

2. use reasonable best efforts to produce employees or others for examination under oath.
- The Insured shall not interfere in any negotiation for settlement or in any legal proceeding.

V. Statutory Conditions

The Statutory Conditions below apply to the peril of fire and, as modified or supplemented by Forms or Endorsements attached, apply as Policy Conditions to all other perils insured by property coverage on this Policy.

A. Misrepresentation

If a person applying for insurance falsely describes the property to the prejudice of the Insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the Insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

B. Property of Others

The Insurer is not liable for loss or damage to property owned by a person other than the Insured unless

1. otherwise specifically stated in the contract, or
2. the interest of the Insured in that property is stated in the contract.

C. Change of Interest

The Insurer is liable for loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

D. Material Change in Risk

1. The Insured must promptly give notice in writing to the Insurer or its agents of a change that is
 - a. material to the risk, and
 - b. within the control and knowledge of the Insured.
2. If an Insurer or its agent is not promptly notified of a change under subparagraph 1. of this condition, the contract is void as to the part affected by the change.
3. If an Insurer or its agent is notified of a change under subparagraph 1. of this condition, the Insurer may
 - a. terminate the contract in accordance with Statutory Condition E., or
 - b. notify the Insured in writing that, if the Insured desires the contract to continue in force, the Insured must, within 15 days after receipt of the notice, pay to the Insurer an additional premium specified in the notice.
4. If the Insured fails to pay an additional premium when required to do so under subparagraph 3. b. of this condition, the contract is terminated at that time and Statutory Condition E. 2. a. applies in respect of the unearned portion of the premium.

E. Termination of Insurance

1. The contract may be terminated
 - a. by the Insurer giving to the Insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - b. by the Insured at any time on request.
2. If the contract is terminated by the Insurer,
 - a. the Insurer must refund the excess of premium actually paid by the Insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and

- b. the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- 3. If the contract is terminated by the Insured, the Insurer must refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
- 4. The 15 day period referred to in subparagraph **1.a.** of this condition starts to run on the day the registered letter or notification of it is delivered to the Insured's postal address.

F. Requirements After Loss

- 1. On the happening of any loss of or damage to the insured property, the Insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition **I.**,
 - a. immediately give notice in writing to the Insurer,
 - b. deliver as soon as practicable to the Insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration,
 - i. giving a complete inventory of that property and showing in detail quantities and cost of that property and particulars of the amount of loss claimed,
 - ii. stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the Insured knows or believes,
 - iii. stating that the loss did not occur through any willful act or neglect or the procurement, means or connivance of the Insured,
 - iv. stating the amount of other insurances and the names of other Insurers,
 - v. stating the interest of the Insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,
 - vi. stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and
 - vii. stating the place where the insured property was at the time of loss,
 - c. if required by the Insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and
 - d. if required by the Insurer and if practicable,
 - i. produce books of account and inventory lists,
 - ii. furnish invoices and other vouchers verified by statutory declaration, and
 - iii. furnish a copy of the written portion of any other relevant contract.
- 2. The evidence given, produced or furnished under subparagraph **1. c.** and **d.** of this condition must not be considered proofs of loss within the meaning of Statutory Conditions **L.** and **M.**

G. Fraud

Any fraud or willfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition **F.** invalidates the claim of the person who made the declaration.

H. Who May Give Notice and Proof

Notice of loss under Statutory Condition **F. 1. a.** may be given and the proof of loss under Statutory Condition

F. 1. b. may be made

- 1. by the agent of the Insured, if

- a. the Insured is absent or unable to give the notice or make the proof, and
 - b. the absence or inability is satisfactorily accounted for, or
- 2. by a person to whom any part of the insurance money is payable, if the Insured refuses to do so or in the circumstances described in clause **a.** of this condition.

I. Salvage

- 1. In the event of loss or damage to insured property, the Insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property
- 2. The Insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the Insured under subparagraph **1.** of this condition.

J. Entry, Control, Abandonment

After loss or damage to insured property, the Insurer has

- 1. an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and
- 2. after the Insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but
 - a. without the Insured's consent, the Insurer is not entitled to the control or possession of the insured property, and
 - b. without the Insurer's consent, there can be no abandonment to it of the insured property.

K. In Case of Disagreement

- 1. In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must be determined using the applicable dispute resolution process set out in the *Insurance Act*, whether or not the Insured's right to recover under the contract is disputed, and independently of all other questions.
- 2. There is no right to a dispute resolution process under this condition until
 - a. a specific demand is made for it in writing, and
 - b. the proof of loss has been delivered to the Insurer.

L. When Loss Payable

Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition **F.** and delivered to the Insurer.

M. Repair or Replacement

- 1. Unless a dispute resolution process has been initiated, the Insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.
- 2. If the Insurer gives notice under subparagraph **1.** of this condition, the Insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss, and must proceed with all due diligence to complete the work within a reasonable time.

N. Notice

1. Written notice to the Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Insurer in the province.
2. Written notice to the Insured may be personally delivered at, or sent by registered mail addressed to, the Insured's last known address as provided to the Insurer by the Insured.

VI. Limitation of Action

Every action or proceeding against an Insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the Insurance Act.

AMENDMENT TO POLICY AND STATUTORY CONDITIONS (APPLICABLE TO PROVINCES OF ALBERTA, BRITISH COLUMBIA AND QUEBEC ONLY)

The following applies where the Insured is domiciled in, or the insured property is located in, the provinces of Alberta, British Columbia or Quebec.

Limitation of Action: Every action or proceeding against an Insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the Insurance Act.

Recovery by Innocent Persons:

1. Where this policy contains a term or condition excluding coverage for loss or damage to property caused by a criminal or intentional act or omission of an Insured or any other person, the exclusion applies only to the claim of a person:
 - a. whose act or omission caused the loss or damage;
 - b. who abetted or colluded in the act or omission;
 - c. who
 - i. consented to the act or omission; and
 - ii. knew or ought to have known that the act or omission would cause the loss or damage; or
 - d. who is in a class prescribed by regulation.
2. Nothing in section 1. Allows a person whose property is insured under the contract to recover more than their proportionate interest in the lost or damaged property.
3. A person whose coverage under contract would be excluded but for section 1. Must comply with any requirements prescribed by regulation.

Statutory Conditions:

These conditions apply to all coverages insured by this policy except where such conditions and provisions may be modified or supplemented in forms or endorsements attached to this policy. Where the terms and conditions of this policy and forms attached hereto are in conflict with the statutes of the provinces of Alberta, British Columbia and Quebec, the interpretation most favourable to the Insured shall prevail.

A. Property of Others

The Insurer is not liable for loss or damage to property owned by a person other than the Insured unless:

1. otherwise specifically stated in the contract; or
2. the interest of the Insured in that property is stated in the contract.

B. Change of Interest

The Insurer shall be liable for loss or damage occurring after an authorized assignment under the Bankruptcy Act (Canada) or change of title by succession, by operation of law, or by death.

C. Material Change

1. The Insured must promptly give notice in writing to the Insurer or its agent of a change that is
 - a. material to the risk, and
 - b. within the control and knowledge of the Insured.
2. If an insurer or its agent is not promptly notified of a change under subparagraph **1.** of this condition the contract is void as to the part affected by the change.
3. If an Insurer or its agent is notified of a change under subparagraph **1.** of this condition, the insurer may:
 - a. terminate the contract in accordance with statutory condition **D.**, or
 - b. notify the Insured in writing that, if the insured desires the contract to continue in force, the Insured must, within fifteen days after receipt of the notice, pay to the Insurer an additional premium specified in the notice.
4. If the Insured fails to pay an additional premium when required to do so under subparagraph **3.a.** of this condition, the contract is terminated at that time and statutory condition **D.2.a.** applies in respect of the unearned portion of the premium.

D. Termination

1. This contract may be terminated:
 - a. by the Insurer giving to the Insured fifteen days' notice of termination by registered mail or five days' written notice of termination personally delivered; or
 - b. by the Insured at any time on request.
2. If the contract is terminated by the Insurer:
 - a. The Insurer must refund the excess of premium actually paid by the Insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - b. the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
3. If the contract is terminated by the Insured, the Insurer must refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
4. The fifteen day period referred to in subparagraph **1.a.** of this condition starts to run on the day the registered letter or notification of it is delivered to the Insured's postal address.

E. Notice

1. Written notice to the Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Insurer in the province.
2. Written notice to the Insured may be personally delivered at, or sent by registered mail addressed to, the Insured's last known address as provided to the Insurer by the Insured.

COMMUNICABLE DISEASE EXCLUSION ENDORSEMENT

Applicable to all property and loss of income coverages of this policy

Communicable Disease

This policy, subject to all applicable terms, conditions and exclusions, covers losses attributable to direct physical loss of or damage to the property insured occurring during the policy period. Consequently and notwithstanding any other provision of this policy to the contrary, this policy does not insure against loss or damage, caused directly or indirectly by any "Communicable Disease", or the fear or threat (whether actual or perceived) of a "Communicable Disease", regardless of any other cause or event that contributes concurrently or in any sequence to such loss or damage, and any loss of income or extra expense loss resulting from such loss or damage.

For the purposes of this endorsement, loss or damage includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test:

- a. for a "Communicable Disease", or
- b. any property insured hereunder that is affected by such "Communicable Disease".

Definitions

Wherever used in this endorsement:

"Animal" means, collectively, all species in the kingdom *Animalia* other than humans.

"Communicable Disease" means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- a. the substance or agent includes, but is not limited to, a virus, bacterium, prion, parasite or other organism or any variation thereof, whether deemed living or not, and
- b. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- c. the disease, substance or agent can cause or threaten damage to human health or human welfare, "Animal" health or "Animal" welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property insured hereunder.

Except as otherwise provided in this Endorsement, all terms, provisions and conditions, of the Policy shall have full force and effect.

INSTALLATION FLOATER BROAD FORM

Words and phrases in quotation marks have special meaning as defined in either Clause 15. of this Form or in the Insuring Agreements and Common Definitions, Exclusions and Conditions Form.

1. Insured Property

This Form, except as hereinafter excluded, insures the following property at the "Installation Site" or while in transit to and from the "Installation Site":

- a. any and all materials, equipment, machinery and supplies of any nature:
 - i. owned by the Insured;
 - ii. owned by others, provided the value of such property is included in the Limit of Insurance;

all to enter into and form part of the completed installation including expendable materials and supplies, not otherwise excluded, necessary to complete the installation;

- b. temporary structures, scaffolding, false work, forms, hoardings, excavation, site preparation and similar work, provided that the value thereof is included in the Limit of Insurance and then only to the extent that replacement or restoration is necessary to complete the installation.

2. Attachment and Territorial Limits

Within the policy period the Insured Property is covered, only within Canada and the continental United States of America, from the time of leaving the "Premises" of the Insured, the owners or the manufacturers for shipment to the "Installation Site", while in transit by rail, public truckman or the Insured's vehicles, while awaiting installation on site and during installation until accepted, or the interest of the Insured ceases, whichever first occurs.

3. Limit of Insurance

The maximum liability of the Insurer in any one loss shall not exceed the Limit of Insurance specified in the "Certificate of Insurance".

4. Deductible

The Insurer is liable for the amount by which the loss or damage caused by an Insured Peril exceeds the amount of the deductible specified in the "Certificate of Insurance" in any one occurrence.

Should any occurrence give rise to the application of more than one deductible amount only the highest deductible will be applied.

5. Insured Peril

This Form, except as herein excluded, insures against all risks of direct physical loss of or damage to the Insured Property.

6. Exclusions

a. Excluded Property

This Form does not insure loss of or damage to:

- i. property at locations which, to the knowledge of the Insured, are vacant, unoccupied or shut down for more than 30 consecutive days;
- ii. property illegally acquired, kept, stored or transported; property subject to forfeiture, seized or confiscated for breach of any law or by order of any public authority;
- iii. property:
 - 1. while waterborne, from the commencement of loading until completion of discharge except on a ferry, railway car or transfer barge, all in connection with land transportation;
 - 2. insured under a Marine Policy;
 - 3. aboard or being transported by any aircraft;
- iv. accounts, bills, currency, deeds, evidence of debt, money, notes, securities, manuscripts, records, blueprints, or other documents, buildings (other than temporary structures insured under Clause 1. b. Insured Property), watercraft, aircraft, motorcycles, motor vehicles, trailers or other conveyances or their appurtenances or accessories;
- v. electrical devices, appliances or wiring caused by artificially generated electrical currents including arcing, unless fire or explosion ensues and then only for loss or damage caused by such ensuing fire or explosion;
- vi. contractor's tools and equipment (except items insured under Clause 1. b. Insured Property) including spare parts and accessories whether owned, loaned, hired or leased.

b. Excluded Perils

This Form does not insure:

- i. the cost of making good:
 1. faulty or improper material;
 2. faulty or improper workmanship;
 3. faulty or improper design;or loss or damage caused directly or indirectly therefrom, provided however, to the extent not otherwise excluded under this Form, resultant damage to the Insured Property caused by fire or explosion shall be insured;
- ii. penalties or liquidated damages for non-completion of or delay in completion of contract or non-compliance with contract conditions or costs incurred solely in an effort to eliminate or reduce penalties or liquidated damages for which the Insured may be contractually liable;
- iii. wear and tear, gradual deterioration, latent defect or inherent vice, provided, however, to the extent otherwise insured and not otherwise excluded under this Form, resultant damage to the property is insured;
- iv. mysterious disappearance, or shortage of Insured Property disclosed when taking inventory;
This Form does not insure against loss or damage caused directly or indirectly:
- v. by mechanical or electrical breakdown or derangement provided, however, to the extent otherwise insured and not otherwise excluded under this Form, resultant damage to the property shall be insured;
- vi. by rust or corrosion, dampness or dryness of atmosphere, frost or freezing, changes of temperature, heating, shrinking, evaporation, loss of weight, leakage of contents, exposure to light, change in colour or texture or finish, contamination, marring or scratching or crushing, unless caused directly by a peril not otherwise excluded in this Form;
- vii. by rodents, insects, or vermin but this exclusion does not apply to loss or damage caused directly by a peril not otherwise excluded in this Form;
- viii. by delay, loss of market or loss of use or occupancy;
- ix. by misappropriation, secretion, conversion, infidelity or any dishonest manner of acquiring possession on the part of the Insured or any other party of interest, employees or agents of the Insured, or any person to whom the property may be entrusted (bailees for hire excepted).

7. Extensions of Coverage

The following extensions of coverage shall not increase the Limit of Insurance specified in the "Certificate of Insurance" and are subject to all the conditions of this Form:

- a. **Debris Removal:** The Insurer will indemnify the Insured for expenses incurred in the removal from the "Installation Site" of debris of the Insured Property, occasioned by loss or damage to such property, for which loss or damage insurance is afforded under this Form.

The amount payable under this extension shall not exceed 25% of the total amount payable for the direct physical loss to Insured Property plus the amount of the applicable deductible.

This extension of coverage does not apply to costs or expenses:

- i. to "Clean Up" "Pollutants" from land or water; or
- ii. for testing, monitoring, evaluating or assessing of an actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "Pollutants".

- b. Insurance is provided for property at unnamed locations, provided such locations are not owned, rented or controlled in whole or in part by the Insured, for an amount equal to 15% of the Limit of Insurance for this Form, or \$25,000, whichever is the lesser.

8. Breach of Conditions

Where a loss occurs and there has been a Breach of Condition relating to a matter before the happening of the loss, which breach would otherwise disentitle the Insured from recovery under this Form, the breach shall not disentitle the Insured from recovery if the Insured establishes that the loss was not caused or contributed to by the Breach of Condition or if the Breach of Condition occurred in any portion of the "Premises" over which the Insured has no control.

9. Reinstatement

Any loss hereunder shall not reduce the Limit of Insurance.

10. Premium Adjustment

This clause applies only if this Form is on a Reporting Basis and an adjustment rate is shown in the "Certificate of Insurance".

The premium stated in this Policy is provisional. The Insured shall report to the Insurer within 30 days after the expiration or anniversary date of this Policy, the total completed contract price of all contracts, plus the value of any and all materials, equipment, machinery and supplies of any nature, the property of others, not included in such completed contract price. Except, however, with respect to any projects which are incomplete at the date of such expiration or anniversary, the Insured shall report to the Insurer that proportion of the completed contract price, plus the value of any and all materials, equipment, machinery and supplies of any nature not included in the completed contract price, which has been completed or installed.

The actual premium shall then be calculated at the rate specified in the "Certificate of Insurance". If the premium so calculated exceeds the provisional premium, the Insured shall pay to the Insurer the amount of such excess. If such premium is less than the provisional premium, the Insurer shall refund to the Insured the amount of the difference subject to the minimum retained premium stated in the "Certificate of Insurance".

11. Verification of Values

The Insurer or its duly appointed representative shall be permitted at all reasonable times during the term of this Policy, or within a year after termination or expiration, to inspect the Insured Property and to examine the Insured's books, records and such policies as they relate to any Insured Property hereunder. Such inspection or examination shall not waive nor in any manner affect any of the terms or conditions of this Form.

12. Valuation and Basis of Settlement

The Valuation Basis shall be the actual cash value at the time the loss or damage occurs but in no event to exceed what it would then cost to repair or replace with material of like kind and quality.

13. Property of Others

At the option of the Insurer, any loss may be paid to the Insured or adjusted with and paid to the customer or the owner of the property.

14. Locked Vehicle Warranty

This clause does not apply to property which is under the control of a common carrier.

Warranted by the Insured that any vehicle in which the Insured Property is carried is equipped with a fully enclosed body or compartment, and the Insurer shall be liable in case of loss by theft from an unattended vehicle only as a direct result of forcible entry (of which there shall be visible evidence) into such body or compartment, the doors of which are securely locked and the windows closed.

15. Definition

Wherever used in this Form, “Installation Site” means the actual site where, at the time of loss or damage, the Insured is contracted to perform installation operations as specified in the “Certificate of Insurance”.

CRIME STANDARD CONDITIONS FORM

Words and phrases in quotation marks have special meaning as defined in the Common Definitions.

All of the Crime Standard Conditions Form set forth hereunder apply with respect to all of the Insured Perils under Burglary and Robbery Forms and/or Endorsements attached to this policy except as these Crime Standard Conditions may be modified or supplemented by the Forms and/or Endorsements attached.

1. Representations

By accepting this policy, the Insured agrees:

- a. that the statements in the “Certificate of Insurance” are accurate and complete;
- b. those statements are based upon representations the Insured made to the Insurer; and
- c. the Insurer has issued this policy in reliance upon the Insured’s representations.

2. Canadian Currency Clause

All Limits of Insurance, premiums and other amounts expressed in the policy are in Canadian currency.

3. Ownership of Property; Interest Covered

The insured “Property” may be owned by the Insured or held by the Insured in any capacity. However, the insurance applies only to the Insured’s interest in such “Property”, or the Insured’s legal liability for such “Property”, and does not apply to the interest of any other person or organization in any of the said “Property”, unless included in the Insured’s proof of loss.

4. Inspection

The Insurer shall be permitted to inspect the “Premises” at any reasonable time.

5. Joint Insured

- a. If more than one Named Insured is specified in the “Certificate of Insurance”, the first Named Insured will act for itself and for every other Named Insured for all purposes for this insurance. If the first Named Insured ceases to be covered, then the next Named Insured becomes the first Named Insured.
- b. If any Named Insured or partner or officer of that Named Insured has knowledge of any information relative to this insurance, that knowledge is considered knowledge of every Named Insured.
- c. Any “Employee” of any Named Insured is considered to be an “Employee” of every Named Insured.

6. Valuation of Property Insured

In no case shall the Insurer be liable in respect of loss or damage to:

- a. “Property”, other than “Securities” and “Property” held by the Insured as a pledge or as collateral for an advance or loan, for more than the actual cash value determined after due allowance for depreciation at the time the loss or damage was discovered by the Insured;
- b. “Securities”, if insured by this policy, for more than the cost of an equivalent amount of “Securities” of the same issue purchased by or at the insistence of the Insurer; provided, however, that if prior to such purchase by or at the insistence of the Insurer, the Insured shall be compelled, by the demands of a third party or by market rules, to assume the cost of an equivalent amount of “Securities” of the same issue, and shall notify the Insurer, in writing, of such compulsion, such cost shall be taken as the value of such “Securities”. If the

“Securities” cannot be replaced and the value cannot be established, it may be determined by agreement or by arbitration;

- c. “Property” held by the Insured as a pledge or as collateral for an advance or loan, for more than the value of the “Property” as determined and recorded by the Insured when making the advance or loan. In the absence of such record the Insurer’s liability shall be limited to the unpaid portion of the advance or loan plus accrued interest at legal rates.

7. Procedure in the Event of Claims for Property of Persons other than the Insured

In the event of a claim for loss involving “Property” not owned by the Insured, the Insurer may adjust such loss or damage either with the Insured or with the owner of such “Property” and payment of such loss or damage to the Insured or owner shall constitute full satisfaction of the claim. If legal proceedings are taken against the Insured to recover for such loss or damage, the Insured shall immediately notify the Insurer in writing and the Insurer may conduct and control the defence in the name and on behalf of the Insured.

8. Provision for Insurer to Repair or Replace

The Insurer may elect to repair any damaged “Property” or replace any lost or damaged “Property” with other of like quality and value or pay for the same in “Money”.

9. Other Insurance

Where there is any other valid and collectible insurance which applies to any loss insured by this policy, the insurance under this policy shall apply only as excess insurance over such other insurance, except:

- a. in the Province of Quebec, where each of the Insurers under its policy is liable to the Insured for its rateable proportion of the loss, or
- b. if such other insurance is a bond or policy of fidelity insurance, any loss covered under both such fidelity insurance and Depositors Forgery shall first be paid under Depositors Forgery.

10. Records

The Insured must keep records of all insured “Property” so the Insurer can verify the amount of any loss.

11. Loss Sustained During Prior Insurance

If the Insured had similar insurance, consisting of one or more policies providing continuous insurance, which terminated with the beginning of this Policy Period, loss to the extent that it is not insured by such prior insurance solely because of late discovery, shall be deemed to have occurred on the first day of this Policy Period.

12. Subrogation

The Insured must transfer to the Insurer all the Insured’s rights of recovery against any person or organization for any loss sustained by the Insured and for which the Insurer has paid and settled. The Insured shall also do whatever is necessary to secure those rights and do nothing after loss to impair them.

13. Cancellation

- a. The Insured may cancel this policy at any time on request by mailing or delivering to the Insurer advance written notice of cancellation.
- b. The Insurer may cancel this policy by mailing or delivering to the Insured written notice of cancellation at least:
 - i. 15 days before the effective date of cancellation if the Insurer cancels for non-payment of premium; or
 - ii. 30 days before the effective date of cancellation if the Insurer cancels for any other reason.Except in Quebec, if notice is mailed, cancellation takes effect in 15 or 30 days. The 15 or 30 day termination period starts to run on the day following the receipt of the registered letter or notification of it

is delivered to the Insured's postal address, depending upon the reason for cancellation as shown in **b. i.** or **ii.** above. Proof of mailing will be sufficient proof of notice.

In Quebec, cancellation takes effect either 15 or 30 days after receipt of the notice at the Insured's last known address depending upon the reason for cancellation. Delivery by the Insurer shall be equivalent to mailing.

- c. The Insurer will mail or deliver their notice to the Insured's last mailing address known to the Insurer.
- d. The policy period will end on the date cancellation takes effect.
- e. If this policy is cancelled, the Insurer will send the Insured any premium refund due. If the Insurer cancels, the refund will be pro rata. If the Insured cancels, the refund will be calculated in accordance with the short rate premium table attached to this policy, subject to the retention of the minimum premium, if any, shown in the "Certificate of Insurance". The cancellation will be effective even if the Insurer has not made a refund.

14. Change of Interest

The Insurer will not be liable to anyone other than the Insured unless the Insurer has been advised of a change of interest and consented to it. However, if the Insured dies, or is declared insolvent or bankrupt, this policy will insure the Insured's legal representative.

15. Changes

This policy contains all the agreements between the Insured and the Insurer concerning the insurance provided by this policy. The Insured may request changes to this policy however, such changes will be effective only upon the Insurer's consent as evidenced by their issuing an Endorsement which will form part of this policy.

16. Duties in the Event of Loss

After the Insured discovers a loss or a situation that may result in loss of or damage to insured "Property" the Insured must:

- a. notify the Insurer as soon as possible;
- b. submit to examination under oath at the Insurer's request and give the Insurer a signed statement of their answers;
- c. give the Insurer a detailed, sworn proof of loss within 120 days;
- d. co-operate with the Insurer in the investigation and settlement of any claim;
- e. give immediate notice to the public police, or other peace authorities having jurisdiction, of any loss due to violation of law;
- f. if "Securities" are insured under this policy, take all reasonable measures to prevent their negotiation, sale or conversion.

17. Legal Action Against the Insurer

The Insured may not bring any legal action against the Insurer:

- a. unless the Insured has complied with all the terms of this insurance; and
- b. until 90 days after the Insured has filed proof of loss with the Insurer; and
- c. unless brought within 2 years from the date the Insured discovers the loss.

18. Recoveries

- a. Any recoveries, less the cost of obtaining them, made after settlement of loss insured by this policy will be distributed as follows:
 - i. to the Insured, until the Insured is reimbursed for any loss that they have sustained that exceeds the Limit of Insurance and the deductible amount, if any;

- ii. then to the Insurer, until they are reimbursed for the settlement made;
- iii. then to the Insured, until they are reimbursed for that part of the loss equal to the deductible amount, if any.
- b. Recoveries do not include recovery:
 - i. from insurance, surety ship, reinsurance, security or indemnity taken for the Insurer's benefit; or
 - ii. of original "Securities" after duplicates of them have been issued.
- c. The Insured is entitled to the recovered "Property" upon reimbursing the Insurer for the amount of indemnity paid to the Insured for such "Property". Whoever recovers such "Property" will immediately notify the other party in writing.

19. Common Definitions

Wherever used in this Policy:

- a. **"Banking Premises"** means the interior of that portion of any building occupied by a banking institution or similar safe depository.
- b. **"Burglary"** means the unlawful taking of insured "Property" from within the "Premises" by a person unlawfully entering or leaving the "Premises" as evidenced by marks of forcible entry or exit.
- c. **"Certificate of Insurance"** means the page(s) of your Policy which provides the specifics of your insured coverages and limits including any supplementary pages or schedule of coverages attached thereto applicable to this policy subject to the terms and conditions of this policy.
- d. **"Credit Card"** means any card issued by a financial institution that may be used repeatedly to borrow "Money", buy products and services on credit.
- e. **"Custodian"** means the Insured or the Insured's partner or any "Employee" authorized by the Insured to have the care and custody of insured "Property", excluding any person while acting as a "Guard", janitor, porter, or "Watchman".
- f. **"Debit Card" or "Automated Teller Card"** means an electronic card issued by a financial institution which allows clients access to their account to withdraw cash or pay for goods and services.
- g. **"Employee"** means any natural person (except a director or trustee of the Insured, if a corporation, who is not also an officer or employee thereof in some other capacity) while in the regular service of the Insured in the ordinary course of the Insured's business during the Policy Period and whom the Insured compensates directly or indirectly by salary, wages or commissions and has the right to govern and direct in the performance of such service, including volunteer workers whether compensated or not, but does not mean any broker, factor, commission merchant, consignee, contractor or other agent or representative of the same general character. As applied to loss under a Commercial Blanket Bond or a Blanket Position Bond, the above words "while in the regular service of the Insured" shall include the first 30 days thereafter, unless insurance with regard to such employee has been otherwise cancelled.
- h. **"Equipment"** means:
 - i. all contents usual to the Insured's business including furniture, furnishings, fittings, fixtures, machinery, tools, utensils and appliances, other than building or "Stock";
 - ii. similar "Property" belonging to others which the Insured is under obligation to keep insured or for which the Insured is legally liable.
- i. **"Guard"** means any able bodied person who accompanies a "Custodian" at the Insured's direction, but who is not a driver of a public conveyance.

- j. **“Jewellery”** means jewellery, watches, gems, pearls, precious or semi-precious stones and articles containing one or more gems, pearls, or precious or semi-precious stones.
- k. **“Kidnapping”** means the compelling of a “Custodian” outside the “Premises”, by violence or threat of violence, to admit a person or to furnish such person with the means of entry into the “Premises” while closed for business, resulting in unlawful taking by such person of insured “Property” from within the “Premises”, provided such loss shall occur before the “Premises” are next open for business.
- l. **“Money”** means currency and coins in current use and having a face value.
- m. **“Occurrence”** means any act or series of related acts involving one or more persons which results in a loss insured by this policy.
- n. **“Premises”** means the interior of that portion of any building which is occupied by the Insured in conducting its business at the address designated in the “Certificate of Insurance”. Coverage is extended to include the space immediately surrounding such building occupied by the Insured in conducting their business.
- o. **“Property”** means any “Property” usual to the Insured’s business other than “Money” and “Securities”, that has intrinsic value but does not include the Insured’s aircraft, watercraft, motor vehicles, trailers or semi-trailers or equipment and accessories attached to them or any “Property” that is excluded under any form.
- p. **“Robbery”** means the taking of insured “Property” from a “Custodian” by a person or persons who have:
 - i. caused or threatened to cause the “Custodian” bodily harm; or
 - ii. committed an overt unlawful act witnessed by the “Custodian”; or
 - iii. taken such “Property” from a “Custodian” who has been killed or rendered unconscious.
- q. **“Robbery of a Watchman”** means the unlawful taking of insured “Property” by violence or threat of violence inflicted upon a “Watchman” and while such a “Watchman” is on duty within the “Premises”.
- r. **“Safe Burglary”** means:
 - i. the unlawful taking of insured “Property” from a vault, safe or automated teller machine, which has a combination or time lock and is located within the “Premises”, by a person making unlawful entry into the vault, automated teller machine or the safe and a vault which contains the safe or the automated teller machine, provided that:
 - 1. all doors of the vault, safe or automated teller machine, or vault, safe or automated teller machine are closed and locked by a combination or time lock; and
 - 2. the unlawful entry was forcible and is evidenced by visible marks on the exterior of the vault, automated teller machine or safe and any vault containing the safe or automated teller machine; or
 - ii. the unlawful taking of the safe or automated teller machine from the “Premises”.
- s. **“Securities”** means all negotiable and non-negotiable instruments or contracts representing “Money” or other “Property”, and includes revenue and other stamps in current use, tokens, and tickets but does not include “Money”.
- t. **“Stock”** means:
 - i. merchandise of every description usual to the Insured’s business but does not include motor vehicles, trailers or semi-trailers or equipment and accessories attached to them;
 - ii. packing, wrapping and advertising materials; and
 - iii. similar “Property” belonging to others which the Insured is under obligation to keep insured or for which the Insured is legally liable;but does not include “Securities”.

- u. **“Terrorism”** means an ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.
- v. **“Watchman”** means any person employed exclusively by the Insured to have care and custody of insured “Property” inside the “Premises”, while the “Premises” are closed for business, and who has no other duties.

SERVICE BLANKET BOND FORM

Words and phrases in quotation marks have special meaning as defined in either this Form or in the Crime Standard Conditions Form.

1. Insuring Agreement

The Insurer agrees, subject to the Crime Standard Conditions Form, the Conditions and Limitations and other terms of this Form, to indemnify the Insured as Trustee for direct loss of “Money” or other “Property”, including that for which the Insured is legally liable, which any person, firm, corporation or association for which the services of the Insured have been engaged shall sustain resulting directly from one or more fraudulent or dishonest acts committed by an “Employee” of the Insured acting alone or in collusion with others, in the performance of such services.

2. General Agreements and Conditions

a. Consolidation Merger

If, through consolidation or merger with, or purchase of assets of, some other concern, any persons shall become “Employees”, the insurance afforded by this form shall also apply as respects such “Employees”, provided the Insured shall give the Insurer written notice within 30 days and shall pay the Insurer an additional premium computed pro rata from the date of such consolidation, merger or purchase to the end of the current premium period.

b. Policy Period, Territory, Discovery

Loss is covered under this form only if discovered not later than one year from the end of the policy period shown in the “Certificate of Insurance”.

Subject to Crime Standard Condition Form, item 11., Loss Sustained During Prior Insurance, this form applies only to loss sustained by the Insured through fraudulent or dishonest acts committed during the policy period by any of the “Employees” engaged in the regular service of the Insured within Canada, the United States of America, its territories or possessions or while such “Employees” are elsewhere for a limited period.

c. Definition of Employee

As used in this form, the definition of “Employee” shall also be deemed to include any proprietor or partner(s) while acting in the capacity of an “Employee” of the business of the Insured.

d. Loss Caused By Unidentifiable Employees

If a loss is alleged to have been caused by the fraudulent or dishonest acts of any one or more of the “Employees” and the Insured shall be unable to designate the specific “Employee” or “Employees” causing such loss, the Insured shall nevertheless have the benefit of this bond provided that the evidence submitted reasonably proves that the loss was in fact due to the fraudulent dishonest acts of one or more of the said “Employees”, and provided, further, that the aggregate liability of the Insurer for any such loss shall not exceed the Limit of Insurance specified in the “Certificate of Insurance”.

e. Prior Fraud, Dishonesty or Cancellation

The coverage of this bond shall not apply to any “Employee” from and after the time that the Insured or any partner or officer thereof not in collusion with such “Employee” shall have knowledge or information that such “Employee” has committed any fraudulent or dishonest act in the service of the Insured or otherwise, whether such act be committed before or after the date of employment by the Insured.

If, prior to the issuance of this bond, any fidelity insurance in favour of the Insured or any predecessor in interest of the Insured and covering one or more of the Insured’s “Employees” shall have been cancelled as to any of such “Employees” by the company issuing such fidelity insurance, and if such “Employees” shall not have been reinstated under the coverage of said fidelity insurance or superseding fidelity insurance, the Insurer shall not be liable on account of such “Employees”.

f. Limits of Insurance

Payment of loss under this bond shall not reduce the amount of insurance payable for other losses under this bond whenever sustained.

The Insurer’s total liability under this bond for any loss caused by any “Employee” or in which such “Employee” is concerned or implicated is limited to the Limit of Insurance specified in the “Certificate of Insurance”. The liability of the Insurer for loss sustained by any or all of the Insured’s shall not exceed the amount for which the Insurer would be liable had all such loss been sustained by any one of the Insured’s.

Regardless of the number of years this bond shall continue in force and the number of premiums which shall be payable or paid, the Limit of Insurance shall not be cumulative from year to year or period to period.

g. Deductible

The Insurer is liable only for that amount by which the loss or damage exceeds the applicable Deductible amount specified in the “Certificate of Insurance” in any one “Occurrence”.

h. Limit of Liability under this form and prior Insurance

With respect to loss which occurs partly during the policy period and partly during the period of other bonds or policies issued by the Insurer to the Insured or to any predecessor in interest of the Insured and terminated or cancelled or allowed to expire and in which the period for discovery has not expired at the time any such loss is discovered, the total liability of the Insurer under this bond and under such other bonds or policies shall not exceed, in the aggregate, the amount specified in the “Certificate of Insurance” or the amount available to the Insured under such other bonds or policies, as limited by the terms and conditions thereof, for any such loss, if the latter amount be the larger.

i. Cancellation as to any Employee

This bond shall be deemed cancelled as to any “Employee”:

- i. immediately upon discovery by the Insured, or by any partner or officer thereof not in collusion with such “Employee”, of any fraudulent or dishonest act on the part of such “Employee”; or
- ii. except in the province of Quebec, at 12:01 a.m., standard time on the effective date specified in a written notice mailed to the Insured. Such date shall be not less than 15 days after the date of mailing. The mailing by the Insurer of notice to the Insured at the address shown in the “Certificate of Insurance” shall be sufficient proof of notice. Delivery of such written notice by the Insurer shall be equivalent to mailing. In the province of Quebec, cancellation shall be made by Endorsement only.

3. Exclusions

This form does not apply:

- a. to loss, or to that part of any loss, as the case may be, the proof of which, either as to its factual existence or as to its amount, is dependent upon an inventory computation or a profit and loss computation;

- b. to the defence of any legal proceeding brought against the Insured, or to fees, costs or expenses incurred or paid by the Insured in prosecuting or defending any legal proceeding whether or not such proceeding results or would result in a loss to the Insured covered by this bond;
- c. to any costs, fees and other expenses incurred by the Insured in establishing the existence of, or amount of loss covered under this bond.

COMMERCIAL GENERAL LIABILITY POLICY - OCCURRENCE BASIS

Throughout this Policy the words “you” and “your” refer to the Named Insured shown in the “Certificate of Insurance”, and any other person or organization qualifying as a Named Insured under Paragraph 3. of **Section II - Who is an Insured**. The words “we”, “us” and “our” refer to Co-operators General Insurance Company providing this insurance.

The word “insured” means any person or organization qualifying as such under **Section II - Who is an Insured**.

Other words and phrases that appear in quotation marks have special meaning. Refer to **Section V - Definitions**.

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Section I - Coverages

Coverage A. Bodily Injury and Property Damage Liability

This Insuring Agreement only applies when an Each Occurrence Limit is shown in the “Certificate of Insurance”.

1. Insuring Agreement

- a. We will pay those sums that the Insured becomes legally obligated to pay as “compensatory damages” because of “bodily injury” or “property damage” to which this insurance applies. We will have the right and duty to defend the insured against any “action” seeking those “compensatory damages”. However, we will have no duty to defend the insured against any “action” seeking “compensatory damages” for “bodily injury” or “property damage” to which this insurance does not apply. We may, at our sole discretion, investigate any “occurrence” and settle any claim or “action” that may result. But:
 - i. The amount we will pay for “compensatory damages” is limited as described in **Section III - Limits of Insurance**; and
 - ii. Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **Supplementary Payments - Coverages A, B and D**.

- b. This insurance applies to “bodily injury” and “property damage” only if:
 - i. The “bodily injury” or “property damage” is caused by an “occurrence” that takes place in the “coverage territory”; and
 - ii. The “bodily injury” or “property damage” occurs during the policy period; and
 - iii. Prior to the policy period, no insured listed under Paragraph 1. of **Section II - Who is an Insured** and no “employee” authorized by you to give or receive notice of an “occurrence” or claim, knew that the “bodily injury” or “property damage” had occurred, in whole or in part. If such a listed insured or authorized “employee” knew, prior to the policy period, that the “bodily injury” or “property damage” occurred, then

any continuation, change or resumption of such “bodily injury” or “property damage” during or after the policy period will be deemed to have been known prior to the policy period.

- c. “Bodily injury” or “property damage” which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1 of **Section II - Who Is An Insured** or any “employee” authorized by you to give or receive notice of an “occurrence” or claim, includes any continuation, change or resumption of that “bodily injury” or “property damage” after the end of the policy period.
- d. “Bodily injury” or “property damage” will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. **Section II - Who is an Insured** or any “employee” authorized by you to give or receive notice of an “occurrence” or claim:
 - i. Reports all, or any part, of the “bodily injury” or “property damage” to us or any other insurer;
 - ii. Receives a written or verbal demand or claim for “compensatory damages” because of the “bodily injury” or “property damage”; or
 - iii. Becomes aware by any other means that “bodily injury” or “property damage” has occurred or has begun to occur.
- e. “Compensatory damages” because of “bodily injury” include “compensatory damages” claimed by any person or organization for care, loss of services or death resulting at any time from the “bodily injury”.

2. Exclusions

This insurance does not apply to:

a. Expected or Intended Injury

“Bodily injury” or “property damage” expected or intended from the standpoint of the insured. This exclusion does not apply to “bodily injury” resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

“Bodily injury” or “property damage” for which the insured is obligated to pay “compensatory damages” by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for “compensatory damages”:

- i. That the insured would have in the absence of the contract or agreement; or
- ii. Assumed in a contract or agreement that is an “insured contract”, provided the “bodily injury” or “property damage” occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an “insured contract”, reasonable legal fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be “compensatory damages” because of “bodily injury” or “property damage”, provided:
 - 1. Liability to such party for, or for the cost of, that party’s defense has also been assumed in the same “insured contract”; and
 - 2. Such legal fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which “compensatory damages” to which this insurance applies are alleged.

c. Workers’ Compensation and Similar Laws

Any obligation of the insured under a workers’ compensation, disability benefits or unemployment or employment compensation law or any similar law.

d. Employer’s Liability

“Bodily injury” to:

- i. An “employee” of the insured arising out of and in the course of:
 - 1. Employment by the insured; or
 - 2. Performing duties related to the conduct of the insured’s business.
- ii. The spouse, child, parent, brother or sister of that “employee” as a consequence of Paragraph 2.d. i. above.

This exclusion applies:

- a. Whether the insured may be liable as an employer or in any other capacity; and
- b. To any obligation to share “compensatory damages” with or repay someone else who must pay “compensatory damages” because of the injury.

This exclusion does not apply to:

- i. Liability assumed by the insured under an “insured contract”; or
- ii. A claim made or an “action” brought by an “employee” on whose behalf contributions are made by or required to be made by you under the provisions of any Canadian provincial or territorial workers’ compensation law, if cover or benefits have been denied by any Canadian Workers’ Compensation Authority.

e. Aircraft and Airport

“Bodily injury” or “property damage” arising out of the ownership, maintenance, operation, use or entrustment to others by or on behalf of any insured of:

- i. Any aircraft or air cushion vehicle that is owned or operated by or rented or loaned to any insured; or
- ii. Any premises for the purpose of an airport or aircraft landing area and all operations necessary or incidental thereto, but this exclusion does not apply to operations within Canada that are conducted solely within an area that is not designated by Transport Canada or any other airport regulatory authority as a restricted area.

For the purpose of this exclusion, use includes “loading or unloading”.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the “occurrence” which caused the “bodily injury” or “property damage” involved the ownership, maintenance, operation, use or entrustment to others of any aircraft that is owned or operated by or rented or loaned to any insured.

f. Watercraft

“Bodily injury” or “property damage” arising out of the ownership, maintenance, operation, use or entrustment to others by or on behalf of any insured of watercraft that is owned or operated by or rented or loaned to any insured.

For the purpose of this exclusion, use includes “loading or unloading”.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the “occurrence” which caused the “bodily injury” or “property damage” involved the ownership, maintenance, operation, use or entrustment to others of any watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- i. A watercraft while ashore on premises you own or rent;
- ii. A watercraft you do not own that is less than 12 metres long; or

- iii. “Bodily injury” to an employee of the insured on whose behalf contributions are made by or required to be made by the insured under the provisions of any Canadian provincial or territorial workers’ compensation law.

g. Automobile

“Bodily injury” or “property damage” arising directly or indirectly, in whole or in part, out of the ownership, maintenance, operation, use or entrustment to others of:

- i. any “automobile” that is owned or operated by or on behalf of or rented or loaned to any insured.
- ii. any motorized snow vehicle or its trailers, and
- iii. any vehicle while being used in any speed or demolition contest or in any stunting activity or in practice or preparation for any such contest or activity.

For the purpose of this exclusion, use includes “loading and unloading”.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the “occurrence” which caused the “bodily injury” or “property damage” involved the ownership, maintenance, operation, use or entrustment to others of any “automobile” that is owned or operated by or on behalf of, or rented or loaned to any insured.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury” or “property damage”.

This exclusion does not apply to:

- 1. “Bodily injury” to an “employee” of the insured on whose behalf contributions are made by or required to be made by the insured under the provisions of any Canadian provincial or territorial workers’ compensation law.
- 2. “Bodily injury” or “property damage” arising out of a defective condition in, or improper maintenance of, any “automobile” that is owned by the insured while leased to others for a period of 30 days or more provided the lessee is obligated under contract to ensure that the “automobile” is insured.
- 3. “Bodily injury” or “property damage” arising out of the ownership, use or operation of machinery, apparatus or equipment mounted on or attached to any “automobile” while at the site of the use or operation of such machinery, apparatus or equipment.
- 4. “Bodily injury” or “property damage” arising out of “loading or unloading” if such operations are precluded from coverage under the motor vehicle section of any provincial or territorial act or regulation.

h. Damage to Property

“Property damage” to:

- i. Property you own, rent or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another’s property;
- ii. Premises you sell, give away or abandon, if the “property damage” arises out of any part of those premises;
- iii. Property loaned to you;
- iv. Personal property in your care, custody or control;

- v. That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the “property damage” arises out of those operations; or
- vi. That particular part of any property that must be restored, repaired or replaced because “your work” was incorrectly performed on it.

Paragraph ii. of this exclusion does not apply if the premises are “your work” and were never occupied, rented or held for rental by you.

Paragraphs iii., iv., v., and vi. of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph vi. of this exclusion does not apply to “property damage” included in the “products-completed operations hazard”.

i. Damage to your Product

“Property damage” to “your product” arising out of “your product” or any part of it.

Only in respect to your operations related to the business of selling, repairing, servicing, parking or storing automobiles, this exclusion is amended to read as follows:

“Property damage” to “your product” arising out of “your product” or any part of it if caused by a defect existing at the time it was sold or transferred to another.

j. Damage to your Work

“Property damage” to that particular part of “your work” out of which an “occurrence” arises due to “your work” having been incorrectly performed on it and included in the “products-completed operations hazard”.

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

k. Damage to Impaired Property or Property Not Physically Injured

“Property damage” to “impaired property” or property that has not been physically injured, arising out of:

- i. A defect, deficiency, inadequacy or dangerous condition in “your product” or “your work”; or
- ii. A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to “your product” or “your work” after it has been put to its intended use.

l. Recall of Products, Work or Impaired Property

“Compensatory damages” claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- i. “Your product”;
- ii. “Your work”; or
- iii. “Impaired property”;

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

m. Personal and Advertising Injury

“Bodily injury” arising out of “personal and advertising injury”.

n. Professional Services

“Bodily injury” (other than “incidental medical malpractice injury”), or “property damage” due to the rendering of or failure to render by you or on your behalf of any “professional services” for others, or any error or omission, malpractice or mistake in providing those services.

o. Abuse

Claims or “actions”:

- i. Arising directly or indirectly from “abuse” committed or alleged to have been committed by an insured, including the transmission of disease arising out of any act of “abuse”; or
- ii. Based on your practices of “employee” hiring, acceptance of “volunteer workers” or supervision or retention of any person alleged to have committed “abuse”; or
- iii. Alleging knowledge by an insured of, or failure to report, the alleged “abuse” to the appropriate authority(ies).

p. Access or Disclosure of Confidential or Personal Information and Data-Related Liability

“Bodily injury” or “property damage” arising directly or indirectly, in whole or in part, out of:

- i. Any access to or disclosure of any person’s or organization’s “confidential or personal information”, or
- ii. The loss of, loss of use of, damage to, corruption of, inability to manipulate “electronic data”.

This exclusion applies even if damages are claimed for notification costs, credit monitoring expenses, forensic expenses, public relations expenses or any other loss, cost or expense incurred by the Named Insured or others arising out of that which is described in Paragraph i. or ii. above.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury” or “property damage”.

q. Employment Practices

“Bodily injury” to:

- i. A person arising out of any:
 1. Refusal to employ that person; or
 2. Termination of that person's employment; or
 3. Employment related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, or discrimination directed at that person; or
- ii. The spouse, child, parent, brother or sister of that person as a consequence of “bodily injury” sustained by the person referred to in Paragraph i. above at whom any of the employment related practices described in Paragraph 1., 2. or 3. is directed.

This exclusion applies:

1. Whether the injury-causing event described in Paragraphs 1., 2. or 3. above occurs before employment, during employment or after employment of that person;
2. Whether the insured may be liable as an employer or in any other capacity; and
3. To any obligation to share “compensatory damage” with or repay someone else who must pay “compensatory damages” because of the “bodily injury”.

r. Asbestos - see Common Exclusions.

s. Fungi or Spores - see Common Exclusions.

t. Information Laws, Including Unauthorized or Unsolicited Communications - see Common Exclusions.

u. Nuclear - see Common Exclusions.

- v. **Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS)** - see Common Exclusions.
- w. **Pollution** - see Common Exclusions.
- x. **Terrorism** - see Common Exclusions.
- y. **War Risks** - see Common Exclusions.

Coverage B. Personal and Advertising Injury Liability

This Insuring Agreement only applies when a Personal and Advertising Injury Limit is shown in the “Certificate of Insurance”.

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as “compensatory damages” because of “personal and advertising injury” to which this insurance applies. We will have the right and duty to defend the insured against any “action” seeking those “compensatory damages”. However, we will have no duty to defend the insured against any “action” seeking “compensatory damages” for “personal and advertising injury” to which this insurance does not apply. We may, at our sole discretion, investigate any offense and settle any claim or “action” that may result. But:
 - i. The amount we will pay for “compensatory damages” is limited as described in **Section III - Limits of Insurance**; and
 - ii. Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **Supplementary Payments - Coverages A, B and D**.

- b. This insurance applies to “personal and advertising injury” caused by an offense arising out of your business but only if the offense was committed in the “coverage territory” during the policy period.

2. Exclusions

This insurance does not apply to:

- a. **Knowing Violation of Rights of Another**
“Personal and advertising injury” caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict “personal and advertising injury”.
- b. **Material Published with Knowledge of Falsity**
“Personal and advertising injury” arising out of oral or written publication in any form of material, if done by or at the direction of the insured with knowledge of its falsity.
- c. **Material Published Prior to Policy Period**
“Personal and advertising injury” arising out of oral or written publication in any form of material whose first publication took place before the beginning of the policy period.
- d. **Criminal Acts**
“Personal and advertising injury” arising out of a criminal act committed by or at the direction of the insured.
- e. **Contractual Liability**
“Personal and advertising injury” for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for “compensatory damages” that the insured would have in the absence of the contract or agreement.
- f. **Breach of Contract**

“Personal and advertising injury” arising out of a breach of contract, except an implied contract to use another’s advertising idea in your “advertisement”.

g. Quality or Performance of Goods - Failure to Conform to Statements

“Personal and advertising injury” arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your “advertisement”.

h. Wrong Description of Prices

“Personal and advertising injury” arising out of the wrong description of the price of goods, products or services stated in your “advertisement”.

i. Infringement of Copyright, Patent, Trademark or Trade Secret

“Personal and advertising injury” arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. However, this exclusion does not apply to infringement, in your “advertisement”, of copyright, trade dress or slogan.

j. Insureds in Media and Internet Type Businesses

“Personal and advertising injury” committed by an insured whose business is:

- i. Advertising, broadcasting, publishing or telecasting.
- ii. Designing or determining content of websites for others; or
- iii. An internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs 25. a., b. and c. of “personal and advertising injury” under **Section V - Definitions**.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

k. Interactive Websites, Electronic Chatrooms, Interactive Forums or Bulletin Boards

“Personal and advertising injury” arising out of an electronic interactive website, chatroom, interactive forum or bulletin board the insured hosts, owns, or over which the insured exercises control.

l. Unauthorized Use of Another’s Name or Product

“Personal and advertising injury” arising out of the unauthorized use of another’s name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another’s potential customers.

m. Employment Practices

“Personal and advertising injury” to:

- i. A person arising out of any:
 - 1. Refusal to employ that person; or
 - 2. Termination of that person’s employment; or
 - 3. Employment related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, or discrimination directed at that person; or
- ii. The spouse, child, parent, brother or sister of that person as a consequence of “personal and advertising injury” sustained by the person referred to in Paragraph i. above at whom any of the employment related practices described in Paragraph 1., 2. or 3. is directed.

This exclusion applies:

1. Whether the injury-causing event described in Paragraphs 1., 2. or 3. above occurs before employment, during employment or after employment of that person;
 2. Whether the insured may be liable as an employer or in any other capacity; and
 3. To any obligation to share "compensatory damages" with or repay someone else who must pay "compensatory damages" because of the "personal and advertising injury".
- n. Access or Disclosure of Confidential or Personal Information and Data Related Liability**
 "Personal and advertising injury" arising directly or indirectly, in whole or in part, out of:
- i. Any access to or disclosure of any person's or organization's "confidential or personal information"; or
 - ii. The loss of, loss of use of, damage to, corruption of, inability to manipulate any person's or organization's "confidential or personal information".
- This exclusion applies even if damages are claimed for notification costs, credit monitoring expenses, forensic expenses, public relations expenses or any other loss, cost or expense incurred by the Named Insured or others arising out of that which is described in Paragraph i. or ii. above.
- This exclusion applies even if claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "personal and advertising injury" involved the:
- i. Access or disclosure of a person's or organizations "confidential or personal information"; or
 - ii. The loss of, loss of use of, damage to, corruption of, inability to manipulate any person's or organization's "confidential or personal information".
- This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "personal and advertising injury".
- o. Asbestos** - see Common Exclusions.
 - p. Fungi or Spores** - see Common Exclusions.
 - q. Information Laws, Including Unauthorized or Unsolicited Communications** - see Common Exclusions.
 - r. Nuclear** - see Common Exclusions.
 - s. Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS)** - see Common Exclusions.
 - t. Pollution** - see Common Exclusions.
 - u. Terrorism** - see Common Exclusions.
 - v. War Risks** - see Common Exclusions.

Coverage C. Medical Payments

This Insuring Agreement only applies when a Medical Expense Limit is shown in the "Certificate of Insurance".

1. Insuring Agreement

- a. We will pay reasonable "medical expenses" for "bodily injury" caused by an accident:
 - i. On premises you own or rent;
 - ii. On ways next to premises you own or rent; or
 - iii. Because of your operations;
 provided that:
 1. The accident takes place in the "coverage territory" and during the policy period;
 2. The expenses are incurred and reported to us within one year of the date of the accident; and

3. The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance as described in **Section III - Limits of Insurance**.

2. Exclusions

We will not pay expenses for “bodily injury”:

a. **Any Insured**

To any insured, except “volunteer workers”.

b. **Hired Person**

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

c. **Injury on Normally Occupied Premises**

To a person injured on that part of premises you own or rent that the person normally occupies.

d. **Workers’ Compensation and Similar Laws**

To a person, whether or not an “employee” of any insured, if benefits for the “bodily injury” are payable or must be provided under a workers’ compensation or disability benefits law or similar law.

e. **Products-Completed Operations Hazard**

Included within the “products-completed operations hazard”.

f. **Coverage A Exclusions**

Excluded under Coverage A.

Coverage D. Tenants’ Legal Liability

This Insuring Agreement only applies when a Tenants’ Legal Liability Limit is shown in the “Certificate of Insurance”.

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as “compensatory damages” because of “property damage” to which this insurance applies. This insurance applies only to “property damage” to premises of others rented to you or occupied by you. We will have the right and duty to defend the insured against any “action” seeking those “compensatory damages”. However, we will have no duty to defend the insured against any “action” seeking “compensatory damages” for “property damage” to which this insurance does not apply. We may, at our sole discretion, investigate any “occurrence” and settle any claim or “action” that may result.

But:

i. The amount we will pay for “compensatory damages” is limited as described in **Section III - Limits of Insurance**; and

ii. Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **Supplementary Payments - Coverages A, B and D**.

b. This insurance applies to “property damage” only if:

i. The “property damage” is caused by an “occurrence” that takes place in the “coverage territory”;

ii. The “property damage” occurs during the policy period; and

- iii. Prior to the policy period, no insured listed under Paragraph 1. of **Section II - Who is an Insured** and no “employee” authorized by you to give or receive notice of an “occurrence” or claim, knew that the “property damage” had occurred, in whole or in part. If such a listed insured or authorized “employee” knew, prior to the policy period, that the “property damage” occurred, then any continuation, change or resumption of such “property damage” during or after the policy period will be deemed to have been known prior to the policy period.
- c. “Property damage” which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of **Section II - Who is an Insured** or any “employee” authorized by you to give or receive notice of an “occurrence” or claim, includes any continuation, change or resumption of that “property damage” after the end of the policy period.
- d. “Property damage” will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **Section II - Who is an Insured** or any “employee” authorized by you to give or receive notice of an “occurrence” or claim:
 - i. Reports all, or any part, of the “property damage” to us or any other insurer;
 - ii. Receives a written or verbal demand or claim for “compensatory damages” because of the “property damage”; or
 - iii. Becomes aware by any other means that “property damage” has occurred or has begun to occur.

2. Exclusions

This insurance does not apply to:

a. Expected or Intended Injury

“Property damage” expected or intended from the standpoint of the insured.

b. Contractual Liability

“Property damage” for which the insured is obligated to pay “compensatory damages” by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for “compensatory damages”:

- i. That the insured would have in the absence of the contract or agreement; or
- ii. Assumed in a contract or agreement that is an “insured contract” provided the “property damage” occurs subsequent to the execution of the contract or agreement. Solely for the purpose of liability assumed in an “insured contract”, reasonable legal fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be “compensatory damages” because of “property damage” provided:
 - 1. Liability to such party for, or for the cost of, that party’s defense has also been assumed in the same “insured contract”; and
 - 2. Such legal fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which “compensatory damages” to which this insurance applies are alleged.

c. Asbestos - see Common Exclusions.

d. Fungi or Spores - see Common Exclusions.

e. Information Laws, Including Unauthorized or Unsolicited Communications - see Common Exclusions.

f. Nuclear - see Common Exclusions.

g. Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS) - see Common Exclusions.

- h. **Pollution** - see Common Exclusions.
- i. **Terrorism** - see Common Exclusions.
- j. **War Risks** - see Common Exclusions.

Common Exclusions - Coverages A, B C and D

This insurance does not apply to:

1. Asbestos

“Bodily injury”, “property damage” or “personal and advertising injury” related to or arising from any actual or alleged liability for any legal remedy of any kind whatsoever (including but not limited to damages, interest, mandatory or other injunctive relief, statutory orders or penalties, legal or other costs, or expenses of any kind) in respect of actual or threatened loss, damage, cost or expense directly or indirectly caused by, resulting from, in consequence of or in any way involving asbestos or any materials containing asbestos in whatever form or quantity, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of asbestos or any materials containing asbestos in whatever form or quantity.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury”, “property damage” or “personal and advertising injury”.

2. Fungi or Spores

- a. “Bodily injury”, “property damage”, “personal and advertising injury” or medical expenses under Coverage C or any other cost, loss or expense incurred by others, arising directly or indirectly, from the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, presence of, spread of, reproduction, discharge or other growth of any “fungi” or “spore(s)” however caused, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of “fungi” or “spore(s)”; or
- b. Any supervision, instructions, recommendations, warnings or advice given or which should have been given in connection with a. above; or
- c. Any obligation to pay damages, share damages with or repay someone else who must pay damages because of such injury or damage referred to in a. or b. above.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury”, “property damage” or “personal and advertising injury”.

This exclusion shall not apply to “bodily injury” or “property damage” which results directly from a “products-completed operations hazard” not otherwise excluded by this policy subject to the following limits:

Each Occurrence: \$250,000

Fungi Liability Aggregate Limit: \$250,000

The Fungi Liability Aggregate Limit is the most we will pay for “compensatory damages” because of “bodily injury” and “property damage” included in the “products-completed operations hazard” in each consecutive annual period and any remaining period less than 12 months, starting with beginning of the policy period shown in the “Certificate of Insurance”, unless the policy is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the limit of insurance that applies.

This exclusion does not apply to any “fungi” or “spores” that are, are on or are contained in “your product”, if “your product” is intended for ingestion by humans or animals and included in the “products-completed operations hazard”.

3. Information Laws, Including Unauthorized or Unsolicited Communications

“Bodily injury”, “property damage” or “personal and advertising injury” imposed by or arising from any action or omission that violates:

- i. The United States of America CAN-SPAM Act of 2003 (or any law amendatory thereof) or any similar regulatory or statutory law in any other jurisdiction;
- ii. The United States of America Telephone Consumer Protection Act (TCPA) of 1991 (or any law amendatory thereof) or any similar regulatory or statutory law in any other jurisdiction;
- iii. The United States of America Fair Credit Reporting Act (FCRA) (or any law amendatory thereof including the Fair and Accurate Credit Transactions Act (FACTA)) or any similar regulatory or statutory law in any other jurisdiction; or
- iv. Any other regulatory or statutory law in any jurisdiction that addresses, limits or prohibits the collecting, communicating, disposal, dissemination, distribution, monitoring, printing, publication, recording, sending or transmitting of content, information or material.

4. Nuclear Energy Liability

- a. Liability imposed by or arising from any nuclear liability act, law, statute or any law amendatory thereof;
- b. “Bodily injury”, “property damage” or “personal and advertising injury” with respect to which an insured under this policy is also insured under a contract of nuclear energy liability insurance (whether the insured is unnamed in such contract and whether or not it is legally enforceable by the insured) issued by the Nuclear Insurance Association of Canada or any other insurer or group or pool of insurers or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability;
- c. “Bodily injury”, “property damage” or “personal and advertising injury” resulting directly or indirectly from the “nuclear energy hazard” arising from:
 - i. The ownership, maintenance, operation or use of a “nuclear facility” by or on behalf of an insured;
 - ii. The furnishings by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any “nuclear facility”;
 - iii. The possession, consumption, use, handling, disposal or transportation of “fissionable substances”, or of other “radioactive material” (except radioactive isotopes, away from a nuclear facility, which have reached the final stage of fabrication so as to be useable for any scientific, medical, agricultural, commercial or industrial purpose) used, distributed, handled or sold by an insured.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury”, “property damage” or “personal and advertising injury”.

5. Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS)

- a. “Bodily injury”, “property damage”, “personal and advertising injury” or any other loss, cost or expense arising directly or indirectly, in whole or in part, out of the actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any “PFAS” at any time or place; or
- b. Any loss, cost or expense arising directly or indirectly, in whole or in part, out of abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of,

or in any way responding to or taking any other action regarding “PFAS”, by any Insured or by any other person or entity.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury”, “property damage”, “personal and advertising injury”, loss, cost or expense.

6. Pollution

- a. “Bodily injury”, “property damage” or “personal and advertising injury” arising out of the actual, alleged, or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of “pollutants”:
 - i. At or from any premises, site or location which is or was at any time owned, managed, rented to others or occupied by any insured, or rented or loaned to any insured. However, this subparagraph does not apply to:
 - 1. “Bodily injury” if sustained within a building and caused by smoke, fumes, vapour or soot from equipment used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building’s occupants or their guests;
 - 2. “Bodily injury” or “property damage” for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
 - 3. “Bodily injury” or “property damage” arising out of heat, smoke or fumes from a “hostile fire”;
 - ii. At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;
 - iii. Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
 - 1. Any insured; or
 - 2. Any person or organization for whom you may be legally responsible; or
 - iv. At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured’s behalf are performing operations if the “pollutants” are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:
 - 1. “Bodily injury” or “property damage” arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of mobile equipment or its parts, if such fuels, lubricants or other operating fluids escape from a permanent and integral mobile equipment part designed to hold, store or receive them. This exception does not apply if the “bodily injury” or “property damage” arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - 2. “Bodily injury” or “property damage” sustained within a building and caused by the release of gases, fumes or vapours from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or

3. "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".
- v. At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants";
- b. Any loss, cost or expense arising of any:
 - i. Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
 - ii. Claim or "action" by or on behalf of a governmental authority for "compensatory damages" because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this Section b. does not apply to liability for "compensatory damages" because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "action" by or on behalf of a governmental authority.

7. Terrorism

"Bodily injury", "property damage", "personal and advertising injury" or any other loss, cost or expense arising directly or indirectly, in whole or in part, out of "terrorism" or out of any activity or decision of a government agency or other entity to prevent, respond to or terminate "terrorism". This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

8. War Risks

"Bodily injury", "property damage", "personal and advertising injury" or any other loss, cost or expense arising directly or indirectly, in whole or in part, out of war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military power. This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

Supplementary Payments - Coverages A, B, and D

1. We will pay, with respect to any claim we investigate or settle, or any "action" against an insured we defend:
 - a. All expenses we incur.
 - b. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - c. All reasonable expenses you incur at our request to assist us in the investigation or defense of the claim or "action", including actual loss of earnings because of time off from work.
 - d. All costs assessed or awarded against you in the "action".
 - e. Any interest accruing after entry of judgment upon that part of the judgment which is within the applicable limit of insurance and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If we defend an insured against an "action" and an indemnitee of the insured is also named as a party to the "action", we will defend that indemnitee if all of the following conditions are met:

- a. The “action” against the indemnitee seeks “compensatory damages” for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an “insured contract”;
- b. This insurance applies to such liability assumed by the insured;
- c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same “insured contract”;
- d. The allegations in the “action” and the information we know about the “occurrence” are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
- e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such “action” and agree that we can assign the same counsel to defend the insured and the indemnitee; and
- f. The indemnitee:
 - i. Agrees in writing to:
 1. Cooperate with us in the investigation, settlement or defense of the “action”;
 2. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the “action”;
 3. Notify any other insurer whose coverage is available to the indemnitee; and
 4. Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
 - ii. Provides us with written authorization to:
 1. Obtain records and other information related to the “action”; and
 2. Conduct and control the defense of the indemnitee in such “action”.

So long as the above conditions are met, legal fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph 2.b.ii. of **Section I - Coverage A - Bodily Injury and Property Damage Liability** or Paragraph 2. b. ii. of **Section I - Coverage D - Tenants’ Legal Liability**, such payments will not be deemed to be “compensatory damages” for “bodily injury” and “property damage” and will not reduce the limits of insurance.

Our obligation to defend an insured’s indemnitee and to pay for legal fees and necessary litigation expenses as Supplementary Payments ends when:

1. We have used up the applicable limit of insurance in the payment of judgments or settlements; or
2. The conditions set forth above, or the terms of the agreement described in Paragraph f. above, are no longer met.

Section II - Who is an Insured

1. If you are designated in the “Certificate of Insurance” as:
 - a. An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
 - b. A partnership, limited liability partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
 - c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
 - d. An organization other than a partnership, limited liability partnership, joint venture or limited liability company, you are an insured. Your “executive officers” and directors are insureds, but only with respect to their duties as

your officers or directors. Your shareholders are also insureds, but only with respect to their liability as shareholders.

- e. A condominium corporation constituted under provincial or territorial legislation relating to condominiums or co-ownership by declaration, a strata corporation in the province of British Columbia or a syndicate of co-owners in the province of Quebec:
 - i. The condominium corporation, strata corporation or syndicate of co-owners;
 - ii. Any “executive officer” or director of such condominium corporation, strata corporation or syndicate of co-owners, but only with respect to duties as such; and
 - iii. Any unit owner of such condominium corporation, any strata lot owner of such strata corporation or any private portion owner of such syndicate of co-owners, or any tenant of such owner, but only with respect to the conduct of the corporation or the syndicate for liability arising out of the common property, excluding liability arising out of the owner’s or tenants possession, occupation or use of the property designated.
 - f. A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.
2. Each of the following is also an insured:
- a. Your “volunteer workers” only while performing duties related to the conduct of your business, or your “employees”, other than either your “executive officers” (if you are an organization other than a partnership, limited liability partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these “employees” are insureds for:
 - i. “Bodily injury” or “personal and advertising injury”:
 - 1. To you, to your partners or members (if you are a partnership, limited liability partnership or joint venture), to your members (if you are a limited liability company) or to a co-“employee” while in the course of his or her employment or performing duties related to the conduct of your business;
 - 2. To the spouse, child, parent, brother or sister of that co-“employee” as a consequence of Paragraph i.1. above;
 - 3. For which there is any obligation to share “compensatory damages” with or repay someone else who must pay “compensatory damages” because of the injury described in Paragraphs i.1. or 2. above;
 - 4. Arising out of his or her providing or failing to provide professional health care services; or
 - 5. To any person who at the time of injury is entitled to benefits under any workers’ compensation or disability benefits law or similar law.
 - ii. “Property damage” to property that is:
 - 1. Owned, occupied or used by,
 - 2. Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any of your “employees”, any partner or member (if you are a partnership, limited liability partnership or joint venture), or any member (if you are a limited liability company).
 - b. Any person (other than your “employee” or “volunteer worker”), or any organization while acting as your real estate manager.
 - c. Any person or organization having proper temporary custody of your property if you die, but only:
 - i. With respect to liability arising out of the maintenance or use of that property; and
 - ii. Until your legal representative has been appointed.

- d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this policy.
3. Any organization you newly acquire or form, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:
 - a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;
 - b. Coverages A and D does not apply to “bodily injury” or “property damage” that occurred before you acquired or formed the organization; and
 - c. Coverage B does not apply to “personal and advertising injury” arising out of an offense committed before you acquired or formed the organization.
4. Each person, firm, or organization for which you have contracted to provide insurance, but only with respect to tort liability that arises out of your operations, and only to the extent required by such “insured contract”.

No person or organization is an insured with respect to the conduct of any current or past partnership, limited liability partnership, joint venture or limited liability company that is not shown as a Named Insured in the “Certificate of Insurance” or added by endorsement hereon.

Section III - Limits of Insurance

1. The Limits of Insurance shown in the “Certificate of Insurance” and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or “actions” brought; or
 - c. Persons or organizations making claims or bringing “actions”.
2. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage A for “compensatory damages” because of “bodily injury” and “property damage” included in the “products-completed operations hazard”.
3. Subject to 2. above, the Each Occurrence Limit is the most we will pay for the sum of:
 - a. “Compensatory damages” under Coverage A; and
 - b. Medical expenses under Coverage C because of all “bodily injury” and “property damage” arising out of any one “occurrence”.
4. The Personal and Advertising Injury Limit is the most we will pay under Coverage B for the sum of all “compensatory damages” because of all “personal and advertising injury” sustained by any one person or organization.
5. The Tenants’ Legal Liability Limit is the most we will pay under Coverage D for “compensatory damages” because of “property damage” to any one premises as a result of any one “occurrence”.
6. Subject to 3. above, the Medical Expense Limit is the most we will pay under Coverage C for all medical expenses because of “bodily injury” sustained by any one person.

The Limits of Insurance of this policy apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the “Certificate of Insurance”, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

7. Deductible

- a. Our obligation under Coverage A and Coverage D to pay “compensatory damages” on your behalf applies only to the amount of “compensatory damages” in excess of any deductible amounts stated in the “Certificate of Insurance” as applicable to such coverages, and the limits of insurance applicable to each “occurrence” for Coverage A and any one premises for Coverage D will be reduced by the amount of such deductible. The Products-Completed Operations Aggregate Limit under Coverage A shall not be reduced by the application of such deductible amounts.
- b. The deductible amount applies as follows:
 - i. Under Coverage A: To all “compensatory damages” because of “property damage” as the result of any one “occurrence”, regardless of the number of persons or organizations who sustain “compensatory damages” because of that “occurrence”.
 - ii. Under Coverage D, Tenants' Legal Liability, to all “compensatory damages” because of “property damage” as the result of any one “occurrence”, regardless of the number of persons or organizations who sustain “compensatory damages” because of that “occurrence”.
- c. The terms of this insurance, including those in respect to:
 - i. Our right and duty to defend any “action” seeking those “compensatory damages”; and
 - ii. Your duties in the event of an “occurrence”, claim or “action” apply irrespective of the application of the deductible amount.
- d. We may pay any part or all of the deductible amount to effect settlement of any claim or “action” and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as has been paid by us.
- e. Should any one “occurrence” give rise to the application of more than one deductible amount, only the highest deductible will be applied.

Section IV - Commercial General Liability Conditions

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this policy.

2. Canadian Currency Clause

All limits of insurance, premiums and other amounts as expressed in this policy are in Canadian currency.

3. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the “Certificate of Insurance” is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

4. Duties in the Event of Occurrence, Claim or Action

- a. You must see to it that we are notified as soon as practicable of an “occurrence” or an offense which may result in a claim. To the extent possible, notice should include:
 - i. How, when and where the “occurrence” or offense took place;
 - ii. The names and addresses of any injured persons and witnesses; and
 - iii. The nature and location of any injury or damage arising out of the “occurrence” or offense.
- b. If a claim is made or “action” is brought against any insured, you must:
 - i. Immediately record the specifics of the claim or “action” and the date received; and

ii. Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "action" as soon as practicable.

c. You and any other involved insured must:

i. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "action";

ii. Authorize us to obtain records and other information;

iii. Cooperate with us in the investigation or settlement of the claim or defense against the "action"; and

iv. Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

5. Economic or Trade Sanctions

This insurance does not apply to the extent that economic or trade sanctions or embargoes imposed or authorized by Canadian law or regulation prohibit the Insurer from providing insurance.

6. Examination of your Books and Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

7. Inspections and Surveys

a. We have the right to:

i. Make inspections and surveys at any time;

ii. Give you reports on the conditions we find; and

iii. Recommend changes.

b. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. We do not warrant that conditions:

i. Are safe or healthful; or

ii. Comply with laws, regulations, codes or standards.

c. Paragraphs a. and b. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

d. Paragraph b. of this condition does not apply to any inspections, surveys, reports or recommendations as we may make relative to certification, under provincial or municipal statutes ordinances, bylaws or regulations, of boilers, pressure vessels or elevators.

8. Legal Action Against Us

No person or organization has a right under this policy:

a. To join us as a party or otherwise bring us into an "action" asking for "compensatory damages" from an insured; or

b. To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for "compensatory damages" that are not payable under the terms of this policy or that are

in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

Every "action" or proceeding against an insurer for the recovery of insurance money payable under contract is absolutely barred unless commenced within the time set out in the Insurance Act or other applicable legislation in any Canadian province or territory. The sole venue for coverage legal action related to this form will be a Court in Canada.

9. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages A, B or D, of this policy our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when b. below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in c. below.

b. Excess Insurance

This insurance is excess over:

- i. Any of the other insurance, whether primary, excess, contingent or on any other basis:
 1. That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";
 2. That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
 3. If the loss arises out of the maintenance or use of watercraft or "automobile" to the extent not subject to Exclusion f. or g. of **Section I - Coverage A. Bodily Injury and Property Damage Liability**.
- ii. Any other primary insurance available to you covering liability for "compensatory damages" arising out of the premises or operations or products-completed operations for which you have been added as an additional insured.

When this insurance is excess, we will have no duty under Coverages A, B or D to defend the insured against any "action" if any other insurer has a duty to defend the insured against that "action". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

1. The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
2. The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the "Certificate of Insurance" of this policy.

c. Method of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

d. **Primary and Non-Contributory**

If, in a written contract with an additional insured added under Section II- Who is an Insured clause 4, you have agreed that this insurance is primary and non-contributory, then this insurance is primary to other insurance available to that additional insured which covers that person or organization as a named insured and we will not seek contribution from that other insurance.

10. Premium Audit

- a. We will compute all premiums for this policy in accordance with our rules and rates.
- b. Premium shown in this policy as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period. Audit premiums are due and payable on notice to the first Named Insured. If the sum of the advance and audit premiums paid for the policy term is greater than the earned premium, we will return the excess to the first Named Insured subject to the retention of the minimum retained premium shown in the "Certificate of Insurance" of this policy.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

11. Premiums

The first Named Insured shown in the "Certificate of Insurance":

- a. Is responsible for the payment of all premiums; and
- b. Will be the payee for any return premiums we pay.

12. Representations

By accepting this policy, you agree:

- a. The statements in the "Certificate of Insurance" are accurate and complete;
- b. Those statements are based upon representations you made to us; and
- c. We have issued this policy in reliance upon your representations.

13. Separation of Insureds, Cross Liability

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this policy to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom claim is made or "action" is brought.

14. Termination

- a. The first Named Insured shown in the "Certificate of Insurance" may terminate this policy by mailing or delivering to us advance written notice of termination.
- b. Subject to c. below, we may terminate this policy by mailing or delivering to the first Named Insured written termination of notice at least:
 - i. 15 days notice of termination by registered mail if termination is for non-payment of premium; or
 - ii. 30 days notice of termination by registered mail if termination is for any other reason.Registered mail termination takes effect 15 or 30 days after the registered letter or notification of it is delivered to the first Named Insured's postal address. Proof of mailing will be sufficient proof of notice.

- c. To the extent that the Civil Code of the Province of Quebec is applicable to this policy, the notice provisions in the General Conditions and Provisions as set out in the Civil Code apply. Accordingly, we may terminate this policy by giving written notice sent by registered mail to the first Named Insured at the last known address of the first Named Insured, which termination shall take effect as follows:
 - i. For non-payment of premium, 15 days following the receipt of the notice;
 - ii. For all other reasons, 30 days following receipt of the notice.
- d. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
- e. The policy period will end on the date termination takes effect.
- f. If this policy is terminated, we will send the first Named Insured any premium refund due. If we terminate, the refund will be pro rata. If the first Named Insured terminates, the refund may be less than pro rata. The termination will be effective even if we have not made or offered a refund.

15. Transfer of Rights of Recovery Against Others to Us

If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "action" or transfer those rights to us and help us enforce them.

16. Transfer of your Rights and Duties Under this Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual Named Insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

Section V - Definitions

- 1. **"Abuse"** means any act or threat involving molestation, harassment, corporal punishment, human trafficking, or any other form of physical, sexual or mental abuse.
- 2. **"Action"** means a civil proceeding in which "compensatory damages" because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Action" includes:
 - a. An arbitration proceeding in which such "compensatory damages" are claimed and to which the insured must submit or does submit with our consent; or
 - b. Any other alternative dispute resolution proceeding in which such "compensatory damages" are claimed and to which the insured submits with our consent.
- 3. **"Advertisement"** means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
 - a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and
 - b. Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
- 4. **"Automobile"** means a land motor vehicle, trailer or semi trailer that is required by law to be insured under a contract evidenced by a motor vehicle liability policy, or any vehicle insured under such a contract, including any attached machinery or equipment.

5. **“Bodily Injury”** means bodily injury, disability, sickness, mental anguish, mental injury, mental shock or disease sustained by a person, including death resulting from any of these at any time.
6. **“Certificate of Insurance”** means the page(s) of your policy which provides the specifics of your insured coverages and limits, including any supplementary pages or schedule of coverages attached thereto applicable to this policy subject to the terms and conditions of this policy.
7. **“Compensatory damages”** means damages due or awarded in payment for actual injury or economic loss. “Compensatory damages” does not include punitive or exemplary damages or the multiple portion of any multiplied damage award.
8. **“Confidential or personal information”** means any information reasonably considered confidential or personal based upon its nature and includes, but is not limited to patents, trade secrets, processing methods, records, personnel information, customer lists, financial information, credit card information, health information and any other information relating to a person which is not generally known to the public.
9. **“Coverage territory”** means anywhere in the world, provided the insured’s responsibility to pay “compensatory damages” is determined in an “action” on the merits, in Canada or the United States of America (including its territories and possessions) or in a settlement we agree to in writing.
10. **“Electronic Data”** means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including but not limited to systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.
11. **“Employee”** includes a “leased worker” and a “temporary worker”.
12. **“Executive Officer”** means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.
13. **“Fissionable substance”** means any prescribed substance that is, or from which can be obtained, a substance capable of releasing atomic energy by nuclear fission.
14. **“Fungi”** includes, but is not limited to, any form or type of mould, yeast, mushroom, mildew, wet or dry rot, or bacteria whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any “fungi” or “spores” or resultant mycotoxins, allergens or pathogens.
15. **“Hostile fire”** means a fire which becomes uncontrollable or breaks out from where it was intended to be.
16. **“Impaired property”** means tangible property, other than “your product” or “your work”, that cannot be used or is less useful because:
 - a. It incorporates “your product” or “your work” that is known or thought to be defective, deficient, inadequate or dangerous; or
 - b. You have failed to fulfill the terms of a contract or agreement;
 if such property can be restored to use by:
 - i. The repair, replacement, adjustment or removal of “your product” or “your work”; or
 - ii. Your fulfilling the terms of the contract or agreement.
17. **“Incidental medical malpractice injury”** means “bodily injury” arising out of the rendering of or failure to render, during the Policy Period, the following services:
 - a. Medical, surgical, dental, x-ray or nursing services or treatment or the furnishing of food or beverages in connection therewith; or
 - b. The furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances;

by any insured or any indemnitee causing the “incidental medical malpractice injury” who is not engaged in the business or occupation of providing any of the services described in a. and b. above.

18. “Insured contract” means:

- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage to premises while rented to you or temporarily occupied by you with permission of the owner is not an “insured contract”;
- b. A sidetrack agreement;
- c. An easement or license agreement in connection with vehicle or pedestrian private railroad crossings at grade;
- d. Any other easement agreement;
- e. An obligation, as required by ordinance or bylaw, to indemnify a municipality, except in connection with work for a municipality;
- f. An elevator maintenance agreement; or
- g. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for “compensatory damages” because of “bodily injury” or “property damage” to a third person or organization, provided the “bodily injury” or “property damage” is caused, in whole or in part, by you or by those acting on your behalf. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph g. does not include that part of any contract or agreement:

- i. That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - 1. Preparing, approving or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - 2. Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- ii. Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failing to render “professional services”, including those listed in 1. above and supervisory, inspection, architectural or engineering activities.

19. “Leased worker” means a person leased to you by a labour leasing firm under an agreement between you and the labour leasing firm, to perform duties related to the conduct of your business. “Leased worker” does not include a “temporary worker”.

20. “Loading or unloading” means the handling of property:

- a. After it is moved from the place it is accepted for movement into or onto an aircraft, watercraft or “automobile”; or
- b. While it is in or on an aircraft, watercraft or “automobile”; or
- c. While it is being moved from an aircraft, watercraft or “automobile” to the place where it is finally delivered; but “loading or unloading” does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or “automobile”.

21. “Medical Expenses” means:

- a. First aid administered at the time of an accident;
- b. Necessary medical, surgical, x-ray and dental services, including prosthetic devices and medical equipment;
- c. Necessary ambulance, hospital, professional nursing and funeral services; and

d. Travel and babysitting expenses.

22. **“Nuclear energy hazard”** means the radioactive toxic, explosive or other hazardous properties of “radioactive material”.

23. **“Nuclear facility”** means:

- a. Any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of plutonium, thorium and uranium or any one or more of them;
- b. Any equipment or device designed or used for:
 - i. Separating the isotopes of plutonium, thorium and uranium or any one or more of them,
 - ii. Processing or utilizing spent fuel, or
 - iii. Handling, processing or packaging waste.
- c. Any equipment or device used for the processing, fabricating or alloying of plutonium, thorium or uranium enriched in the isotope uranium 233 or in the isotope uranium 235, or any one or more of them if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- d. Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste radioactive material;

and includes the site on which any of the foregoing is located, together with all operations conducted thereon and all premises used for such operations.

24. **“Occurrence”** means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

25. **“Personal and advertising injury”** means injury, including consequential “bodily injury”, arising out of one or more of the following offenses:

- a. False arrest, detention or imprisonment;
- b. Malicious prosecution;
- c. The wrongful eviction from, wrongful entry into or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
- d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person’s or organization’s goods, products or services;
- e. Oral or written publication, in any manner, of material that violates a person’s right of privacy;
- f. The use of another’s advertising idea in your “advertisement”; or
- g. Infringing upon another’s copyright, trade dress or slogan in your “advertisement”.

26. **“PFAS”** means any perfluoroalkyl or polyfluoroalkyl substances, including but not limited to:

- a. Any fluorinated chemical or substance that contains at least one fully fluorinated methyl or methylene carbon atom, including but not limited to:
 - i. Any non-polymer chemical or substance, including but not limited to perfluoroalkyl acid (PFAA), perfluoroalkyl carboxylic acid (PFCA), perfluoroalkane sulfonic acid (PFSA), perfluorooctanoic acid (PFOA), perfluorooctane sulfonic acid (PFOS), or fluorotelomer-based substances; or
 - ii. Any polymer chemical or substance, including but not limited to fluorinated polymers, fluoropolymers, perfluoropolyethers (PFPE), or side-chain fluorinated polymers; or

- b. Any salts, precursor chemicals, derivatives, homologues, isomers, telomers, esters, alcohols, acids, and related degradation products or by-products of any such chemical or substance described in a. above; or
 - c. Any good or product that consists of or contains any chemical or substance described in a. or b. above, including any containers, materials, parts or equipment furnished in connection with such good or product.
27. **"Pollutants"** mean any solid, liquid, gaseous or thermal irritant or contaminant, including but not limited to smoke, odour, vapour, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
28. **"Products-completed operations hazard":**
- a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:
 - i. Products that are still in your physical possession; or
 - ii. Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of all the following times:
 - 1. When all of the work called for in your contract has been completed.
 - 2. When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
 - 3. When that part of work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.
 Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.
 - b. Does not include "bodily injury" or "property damage" arising out of:
 - i. The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle that is not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured; or
 - ii. The existence of tools, uninstalled equipment or abandoned or unused materials.
29. **"Professional services"** shall include but not be limited to:
- a. Medical, surgical, dental, x-ray or nursing service or treatment, or the furnishing of food or beverages in connection therewith; however the furnishing of food or beverages as the sole function of the insured is not "professional services";
 - b. Any professional service or treatment conducive to health;
 - c. Professional services of a pharmacist;
 - d. The furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances;
 - e. The handling or treatment of deceased human bodies including autopsies, organ donations or other procedures;
 - f. Any cosmetic, body piercing, tonsorial, massage, physiotherapy, chiropody, hearing aid, optical or optometrical services or treatments;
 - g. Engineering, designing, architectural, draftsperson or surveying services, including:
 - i. The preparing, approving or failing to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - ii. Supervisor and inspection activities;

- h. Accountant's, advertiser's, notary's (Quebec), public notary's, paralegal's, lawyer's, real estate broker's or agent's, insurance broker's or agent's, travel agent's, financial institution's, or consultant's professional advices or activities;
- i. Any computer programming or re-programming, consulting, advisory or related services; or
- j. Claim investigation, adjustment, appraisal, survey or audit services; or
- k. Professional services of a veterinarian.

30. "Property damage" means:

- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that cause it; or
- b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purpose of this instance, "electronic data" is not tangible property.

- 31. "Radioactive material"** means uranium, thorium, plutonium, neptunium, their respective derivatives and compounds, radioactive isotopes of other elements and any other substances which may be designated by any nuclear liability act, law or statute, or any law amendatory thereof, as being prescribed substances capable of releasing atomic energy, or as being requisite for the production, use or application of atomic energy.
- 32. "Spores"** includes, but is not limited to, any reproductive particle or microscopic fragment produced by, emitted from or arising out of any "fungi".
- 33. "Temporary worker"** means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.
- 34. "Terrorism"** means any ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.
- 35. "Volunteer worker"** means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you. Reasonable reimbursement for expenses or mileage will not be considered compensation for the purposes of this clause.
- 36. "Your product":**
 - a. Means
 - i. Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - 1. You;
 - 2. Others trading under your name; or
 - 3. A person or organization whose business or assets you have acquired; and
 - 4. Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.
 - b. Includes:
 - i. Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
 - ii. The providing of or failure to provide warnings or instructions.
 - c. Does not include vending machines or other property rented to or located for the use of others but not sold.

37. “Your work”:

- a. Means:
 - i. Work or operations performed by you or on your behalf; and
 - ii. Materials, parts or equipment furnished in connection with such work or operations
- b. Includes:
 - i. Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of “your work”; and
 - ii. The providing of or failure to provide warnings or instructions.

EMPLOYMENT PRACTICES LIABILITY - WRONGFUL EMPLOYMENT ACT

This Endorsement modifies insurance provided under the Commercial General Liability Form.

Insuring Agreement

A. Liability

The insurer shall pay on behalf of the insured any “loss” for which the insured becomes legally obligated to pay on account of any “claim” by or on behalf of a past, present or prospective “employee” of the insured for a “wrongful employment act” taking place during the “policy period”.

B. Defense

The insurer shall have the right and duty to defend “claims” to which this coverage applies brought against the insured, even if the allegations in the “claim” are groundless, false or fraudulent. The insurer’s right and duty to defend includes the right and duty to select defense counsel. The insurer will give consideration to the insured’s preference for defense counsel; however the final decision rests with the insurer. The insurer’s duty to defend any “claim” or to pay for any “loss” for such “claim” ends when the limit of liability applicable to such “claim” or the aggregate limit for the “policy period” has been exhausted.

The insured agrees not to settle any “claim”, incur any “defense costs” or otherwise assume any contractual obligation or admit any liability with respect to any “claim” without the insurer’s written consent; provided such consent to settle any “claim” shall not be required if the total “loss” incurred on account of such “claim” is equal or less than the applicable deductible amount set forth in the “Certificate of Insurance”. The insurer shall not be liable for any settlement, “defense costs”, assumed obligation or admission to which it has not consented.

The insured agrees to provide the insurer with all information, assistance and co-operation which the insurer requests and agree that in the event of a “claim: the insured will do nothing that shall prejudice the insurer’s position or its potential or actual rights of recovery. The insurer may make any investigation it deems necessary.

C. Limit of Liability and Deductible

For the purposes of this policy, all Claims” arising out of the same “wrongful employment act” and all “interrelated wrongful employments acts” of insured shall be deemed one “claim”.

The limit of liability with respect to this coverage is as stated in the “Certificate of Insurance”.

The limit of liability stated in the “Certificate of Insurance” for this coverage is also the Aggregate Limit which is the most we will pay for the sum of “compensatory damages” under this coverage.

Our obligation under this coverage to pay damages on behalf of the insured applies only to the amount of damages in excess of the deductible amount stated in the “Certificate of Insurance”. The deductible amount stated for non-indemnifiable “loss” in the “Certificate of Insurance” shall apply to “loss” incurred by the insured for which the

person or organization is neither permitted nor required by common or statutory law to indemnify of for which the person or organization fails to indemnify by reason of its “financial impairment”.

The deductible amount applies separately to each claim sustained by any one person or organization. If more than one claim arises out of the same occurrence then the deductible amount shall be applied to each claim.

We may pay part or all of the deductible amount to effect settlement of any claim or suit and upon notification of the action taken you shall promptly reimburse us for such part of the deductible as has been paid by us.

D. Exclusions

1. The insurer shall not be liable for “loss” on account of any “claim” made against the insured:
 - a. based upon, arising out of, or attributable to any fact, circumstance or situation which has been the subject of any written notice given under any policy of which this policy is a replacement or renewal;
 - b. based upon, arising out of, or attributable to any demand, suit or proceeding pending against any insured on or prior to the pending or prior date set forth in the “Certificate of Insurance”, or the same or substantially the same fact, circumstance or situation underlying or alleged therein;
 - c. for an actual or alleged violation of the responsibilities, obligations, or duties imposed by:
 - i. any law governing workers’ compensation, employment insurance, old age security, disability benefits or similar law;
 - ii. the Pension Benefits Standards Act or the Canada Pension Plan;
 - iii. the Canada Labour Code Part I (Basic Freedoms) and Part II (Occupational Health and Safety);
 - iv. any collective bargaining agreement;
 - v. any other federal, provincial, territory or local statutory, common or civil law or law similar to any statute or law described in i. through v. of this exclusion, or orders in council or rules, policies or regulations, promulgated under any of such statutes or law;provided this exclusion shall not apply to any “claim” for any actual or alleged retaliatory treatment of the claimant by the insured on account of the claimant’s exercise of rights pursuant to any such statute, law, order in council, rule, policy or regulation;
 - d. for pay equity, including a claim for an actual or alleged violation of the responsibilities, obligations or duties imposed by the Canadian Human Rights Act - Section 11, order in council, or rules, policies or regulations, promulgated there under and amendments thereto, or any other similar federal, provincial, territory or local statutory, common or civil law, provided this exclusion shall not apply to any “claim” for any actual or alleged retaliatory treatment of the claimant by the insured on account of the claimant’s exercise of rights pursuant to any such statute, law, order in council, rule, policy or regulation;
 - e. for bodily injury (other than mental anguish or emotional stress), sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof.
2. The insurer shall not be liable for that part of “loss”, other than “defense costs”, which constitute:
 - a. amounts owing under or assumed by the insured pursuant to an express written contract or agreement with the insured;
 - b. amounts owing by the insured for compliance with the standards set out in the Canada Labour Code (except Sexual Harrassment) orders in council, or rules, policies or regulators promulgated there under and amendments thereto, or any other similar federal, provincial, territory or local statutory, common or civil law;

- c. the costs associated with providing any reasonable accommodations required by, made as a result of, or to conform with the requirements of the Canadian Human Rights Act, and any amendments thereto or any similar federal, provincial, territory or local statutory, common or civil law;
- d. the costs of compliance with or the satisfaction or remedy of an undertaking, a direction, an order, a violation, a determination or a certificate negotiated, issued, made or commuted under the Canadian Employment Equity Act, rules, orders, order in council, or rules, policies or regulations, promulgated thereunder and amendments thereto, or any other similar federal, provincial, territory or local statutory, common or civil law, provided this exclusion shall not apply to any “claim” for any actual or alleged retaliatory treatment of the claimant by the insured on account of the claimants exercise of rights pursuant to any such statute, law, order in council, rule, policy or regulation;
- e. compensation earned by the claimant in the course of employment but not paid by the person or organization, including any unpaid salary, bonus, wages, severance pay, retirement benefits, vacation days or sick days; provided, however, this exclusion shall not apply to any back pay or front pay; or
- f. medical or insurance benefits (or the equivalent value thereof) to which the claimant allegedly was entitled or would have been entitled had the person or organization provided the claimant with a continuation or conversion of such benefits of insurance.

No fact pertaining to or knowledge possessed by any insured shall be imputed to any other insured for purposes of applying the exclusions.

E. Definitions

When used in this policy:

1. “Claim” means:
 - a. a written demand of monetary damages;
 - b. a civil proceeding commenced by the service of a complaint, statement of claim or similar pleading;
 - c. a formal administrative or regulatory proceeding commenced by the insured’s receipt of a notice of charges, a formal investigation order or similar document; or
 - d. an arbitration or other alternative dispute resolution proceeding; against any insured for a “wrongful employment act”, including any appeal or judicial review therefrom.

“Claim” does not mean or include any criminal investigation or proceeding.
2. “Defense costs” means that part of a “loss” consisting of reasonable costs, charges, fees (including but not limited to lawyers’ fees and experts’ fees) and expenses (other than regular or overtime wages, salaries or fees of the directors, officers or employees of the person or organization incurred in defending or investigating “claims” and the premium for appeal, attachment or similar bonds.
3. “Financial impairment” means the status of the person or organization resulting from:
 - a. The appointment by any provincial, territory or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate the person or organization; or
 - b. The person or organization becoming a debtor in possession.
4. “Interrelated wrongful employment acts” means all “wrongful employment acts” that have a common nexus any fact, circumstance, situation, event, transaction, cause or series of casually connected facts, circumstances, situations, events, transactions or causes.
5. “Loss” means the total amount which the insured becomes legally obligated to pay on account of each “claim” and for all “claims” in each “policy period” made against them for wrongful employment acts” for which

coverage applies, including, but not limited to, damages (including front and back pay), judgements, pre-judgement and post-judgement interest, settlements and “defense costs”.

“Loss” does not include:

- a. any amount not indemnified by the organization for which the insured is absolved from payment by reason of any covenant, agreement or court order;
 - b. fines or penalties imposed by law;
 - c. the costs to comply with any injunctive or other non-monetary relief or any agreement to provide such relief;
 - d. matters uninsurable under the law pursuant to which this policy is construed;
 - e. “punitive damages”
 - f. costs incurred by an insured to modify or adapt any building or property in order to make such building or property more accessible or accommodating to any disabled person, or cost of compliance or any obligations imposed by any Workplace Health and Safety Legislation.
6. “Policy period” means the period of time specified as the policy period in the “Certificate of Insurance”, subject to prior termination in accordance with **Section IV, Conditions**, item 13, Termination, to which this policy attaches. If this period is less than or greater than one (1) year, then the limits of liability specified in the “Certificate of Insurance” shall be the insurer’s maximum limit of liability under this policy for the entire period.
7. “Punitive damages” means punitive or exemplary damages or the multiple portion of any multiplied damage award.
8. “Wrongful employment act” means any error, misstatement, misleading statement, act omission, neglect, or breach of duty actually or allegedly committed or attempted by the person or organization or by one or more insureds in their capacity as such, in connection with any:
- a. actual, alleged or constructive wrongful dismissal, discharge or termination of employment;
 - b. breach of any oral, written or implied employment contract or quasi-employment contract;
 - c. employment related misrepresentation
 - d. violation of any federal, provincial, territory or local statute, regulation, ordinance, by law, common law, civil law or public policy concerning employment or discrimination in employment;
 - e. sexual or other illegal workplace harassment (including without limitation, offensive, intimidating, coercive or unwelcome conduct, advances, contact or communications;
 - f. wrongful failure to employ or promote;
 - g. wrongful discipline;
 - h. employment related invasion of privacy;
 - i. employment related defamation; or
 - j. employment related wrongful infliction of emotional distress.

Except as otherwise provided in this Endorsement, all terms, provisions and conditions, of the Policy shall have full force and effect.

LIMITED POLLUTION LIABILITY ENDORSEMENT

This Endorsement modifies insurance provided under the Commercial General Liability Form.

With respect to Section I - Coverages, Common Exclusions - Coverages **A.**, **B.**, **C.** and **D.**, Item **6.** Pollution exclusion is deleted and replaced by the following:

This insurance does not apply to:

6. Pollution

- a. “Bodily injury” or “property damage” or “personal and advertising injury” arising out of the actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of “pollutants”:
 - i. At or from any premises, site or location which is or was at any time owned, managed, rented to others or occupied by, any insured, or rented or loaned to any insured. However, this subparagraph does not apply to:
 - 1. “Bodily injury” if sustained within a building and caused by smoke, fumes, vapour or soot from equipment used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building’s occupants or their guests;
 - 2. “Bodily injury” or “property damage” for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
 - 3. “Bodily injury” or “property damage” arising out of heat, smoke or fumes from a “hostile fire”;
 - ii. At or from any premises, site or location which is or was at any time, used by or for any Insured or others for the handling, storage, disposal, processing or treatment of waste;
 - iii. Which are or were at any time transported, handled, stored, treated, disposed of or processed as waste by or for:
 - 1. Any insured; or
 - 2. Any person or organization for whom you may be legally responsible; or
 - iv. At or from any premises, site or location on which any Insured or any contractors or subcontractors working directly or indirectly on any Insured’s behalf are performing operations if the “pollutants” are brought on or to the premises, site or location in connection with such operations by such Insured, contractors or subcontractors. However, this subparagraph does not apply to:
 - 1. “Bodily injury” or “property damage” arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of mobile equipment or its parts, if such fuels, lubricants or other operating fluids escape from a permanent and integral mobile equipment part designed to hold, store or receive them. This exception does not apply if the “bodily injury” or “property damage” arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - 2. “Bodily injury” or “property damage” sustained within a building and caused by the release of gases, fumes or vapours from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or

3. "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".
- v. At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize, or in any way respond to, or assess the effect of "pollutants".
- b. Any loss, cost or expense arising out of any:
 - i. Request, demand, order or statutory or regulatory requirement that any Insured or others test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize, or in any way respond to, or assess the effect of "pollutants"; or
 - ii. Claim or "action" by or on behalf of a governmental authority for "compensatory damages" because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this section b. does not apply to liability for "compensatory damages" because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "action" by or on behalf of a governmental authority.

Sub-paragraphs i. and iv. of paragraph a. of this exclusion do not apply to "bodily injury" or "property damage" or "personal and advertising injury" caused by the unexpected or unintentional spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "pollutants" that:

1. Results in the injurious presence of "pollutants" in or upon land, the atmosphere, drainage or sewage system, watercourse or body of water; and
2. Is detected within 120 hours after the commencement of the spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "pollutants"; and
3. Is reported to us within 120 hours of being detected; and
4. Does not occur in a quantity or with a quality that is routine or usual to the business of the Insured.

The Limit of Liability with respect to this endorsement is as stated in the "Certificate of Insurance".

The Limit of Liability stated in the "Certificate of Insurance" for this endorsement is part of, not in addition to the Section I - Coverage **A.**, **B.**, **C.** and **D.** limits stated in the "Certificate of Insurance".

The Limit of Liability stated in the "Certificate of Insurance" for this endorsement is also the Aggregate Limit, which is the most we will pay for the sum of compensatory damages under this endorsement.

The deductible amount stated in the "Certificate of Insurance" for this endorsement shall apply to all compensatory damages because of "property damage" as a result of any one "occurrence" regardless of the number of persons or organizations who sustain compensatory damages because of that "occurrence". We shall be liable for loss only in excess of the amount deducted.

Except as otherwise provided in this Endorsement, all terms, provisions and conditions, of the Policy shall have full force and effect.

DAMAGE TO UNDERGROUND PROPERTY WARRANTY ENDORSEMENT

This Endorsement modifies insurance provided under the Commercial General Liability Form.

It is warranted that in relation to any activities of "ground disturbance" performed by you or on your behalf, or over which you directly or indirectly exercise control, or with respect to any contracts entered into by you with respect to any "ground disturbance", the Insured shall prior to commencing such "ground disturbance" do the following:

1. Advise all owners and operators of "buried facilities" in the area of the proposed "ground disturbance" of the intent to disturb the ground and request that they identify and mark the horizontal alignment of those "buried facilities" before the "ground disturbance" commences;
2. Expose "buried facilities" in conflict with the proposed "ground disturbance", using non-destructive techniques acceptable to the owner or operator of the "buried facilities", before using mechanical excavation equipment;
3. Support and protect exposed "buried facilities" from damage to the satisfaction of the owner or operator of the "buried facilities";
4. Report any damage, caused or found, to the owner or operator of the "buried facilities"; and
5. Comply with governing regulatory requirements and industry best practices.

In the event that the Insured breaches this warranty, coverage is excluded in respect to any and all losses, claims or expenses, however arising, for both "bodily injury" and "property damage" arising from said activities.

Additional Definitions

- a. "Buried facilities" means anything below ground for use in the collection, storage, transmission or distribution of: potable, reclaimed, irrigation or storm water; sewage; electronic, telephonic or telegraphic communications; cable vision; electrical energy; natural gas, oil or other petroleum products; steam; chemicals; or other substances. Buried facilities include: pipes; conduits; culverts; wires; cables; fibre optics; duct banks; tanks; manholes; catch basins; valve chambers; and their attachments and appurtenances.
- b. "Ground disturbance" means any work, operation or activity that results in a disturbance of the earth including: digging; excavating; trenching; plowing pipe or cable; vertical or horizontal drilling or augering; horizontal directional drilling; hydrovacating; tunnelling, boring or pipe pushing; cutting fire breaks; ditch shaping; grading or land contouring; topsoil stripping; land levelling; tree planting; blasting or vibroseis; mechanical rock picking; subsoil aeration or stabilization; and driving fence posts bars, rods, pins or anchors.

Except as otherwise provided in this Endorsement, all terms, provisions, and conditions, of the Policy shall have full force and effect.

Signature of Insured: ***Signature on file***

UNDERGROUND PROPERTY DAMAGE DEDUCTIBLE ENDORSEMENT

This Endorsement modifies insurance under the Commercial General Liability Form.

The deductible amount applicable to "property damage" to property located underground, meaning below the surface of the ground is as stated in the "Certificate of Insurance" as Underground Property Damage Deductible.

Except as otherwise provided in this Endorsement, all terms, provisions and conditions, of the Policy shall have full force and effect.

NON-OWNED AUTOMOBILE LIABILITY INSURANCE

Insuring Agreement

Now therefore, in consideration of the payment of premium specified and subject to the limits, terms, conditions, provisions, definitions and exclusions herein stated:

Section A - Third Party Liability

The Insurer agrees to indemnify the Insured against the liability imposed by law upon the Insured for loss or damage arising from the use or operation of any automobile not owned in whole or in part by or licensed in the name of the Insured, and resulting from

Bodily injury to or the death of any person or damage to property of others not in the care, custody or control of the insured:

Provided always the Insurer shall not be liable under this Policy:

1. for any liability which arises from the use or operation of any automobile while personally driven by the Insured if the Insured is an individual; or
2. *for any liability imposed upon any person insured by this Policy:
 - a. by any workers' compensation law; or
 - b. by any law for bodily injury to or the death of the Insured or any partner, officer or employee of the Insured while engaged in the business of the Insured; or
3. for liability assumed by any person insured by this policy voluntarily under any contract or agreement; or
4. for loss or damage to property carried in or upon an automobile personally driven by any person insured by this Policy to any property owned or rented by, or in the care, custody or control of any such person; or
5. for any amount in excess of the limit stated in the Certificate of Insurance and expenditures provided for in the Additional Agreements of this Policy; subject always to the provisions of the section of the Insurance Act (Automobile Insurance Part) relating to the nuclear energy hazard.

* Not applicable in the Province of Ontario.

Additional Agreements of Insurer

Where indemnity is provided by this Policy, the Insurer further agrees:

1. upon receipt of notice of loss or damage caused to persons or property, to serve any person insured by this Policy by such investigation thereof, or by such negotiations with the claimant, or by such settlement of any resulting claims, as may be deemed expedient by the Insurer; and
2. to defend in the name and on behalf of any person insured by this Policy and at the cost of the Insurer any civil action which may at any time be brought against such person on account of such loss or damage to persons or property; and
3. to pay all costs taxed against any person insured by this Policy in any civil action defended by the Insurer and any interest accruing after entry of judgment upon that part of the judgment that is within the limits of the Insurer's liability; and
4. in case the injury be to a person, reimburse any person insured by this Policy for outlay for such medical aid as may be immediately necessary at the time of such injury; and

5. be liable up to the minimum limit(s) prescribed for that province or territory of Canada in which the accident occurred, if that limit(s) is higher than the limit stated in the Certificate of Insurance; and
6. not set up any defence to a claim that might not be set up if the Policy were a motor vehicle liability Policy issued in the province or territory of Canada in which the accident occurred.

Agreements of Insured

Where indemnity is provided by this section, every person insured by this Policy:

1. by the acceptance of this Policy, constitutes and appoints the Insurer his irrevocable attorney to appear and defend in any province or territory of Canada in which action is brought against the Insured arising out of the use or operation of an automobile with respect to which insurance is provided hereunder;
2. shall reimburse the Insurer, upon demand, in the amount which the Insurer has paid by reason of the provisions of any statute relating to automobile insurance and which the Insurer would not otherwise be liable to pay under this Policy.

General Provisions and Definitions

1. Additional Insureds

The Insurer agrees to indemnify in the same manner and to the same extent as if named herein as the Insured, every partner, officer or employee of the Insured who, with the consent of the owner thereof, personally drives:

- a. in the business of the Insured stated in the Certificate of Insurance, any automobile not owned in whole or in part by or licensed in the name of:
 - i. the Insured; or
 - ii. such additional insured person; or
 - iii. any person or persons residing in the same dwelling premises as the Insured or such additional insured person; or
- b. any automobile hired or leased in the name of the Insured except an automobile owned in whole or in part or licensed in the name of such additional insured person.

2. Territory

This policy applies only to the use or operation of automobiles within Canada or the United States of America or upon a vessel plying between ports of those countries.

3. Hired Automobiles Defined

The term "Hired Automobiles" as used in this Policy means automobiles hired or leased from others with or without drivers, used under the control of the Insured in the business stated in the Certificate of Insurance but shall not include any automobile owned in whole or in part by or licensed in the name of the Insured or any partner, officer or employee of the Insured.

4. Automobiles Operated Under Contract Defined

The term "Automobiles Operated Under Contract" as used in this Policy shall mean automobiles operated in the business of the Insured stated in the Certificate of Insurance where the complete supervision, direction and control of such automobiles remain with the owner thereof, but shall not include any automobile owned in whole or in part by or licensed in the name of the Insured or any partner, officer or employee of the Insured.

5. Two or More Automobiles

When two or more automobiles are insured hereunder the terms of this Policy shall apply separately to each, but a motor vehicle and a trailer or trailers attached thereto shall be held to be one automobile as respects the limits of liability under Section A.

Statutory Conditions

The Statutory Conditions of the Non-Owned Automobile Policy as set out in the Insurance Act of the Province in which this Policy is issued shall form part of this Policy.

CONTRACTUAL LIABILITY ENDORSEMENT (FOR ATTACHMENT ONLY TO A NON-OWNED AUTOMOBILE POLICY)

In consideration of the premium for which this Policy is issued, it is understood and agreed that exclusion 3. of Section A - Third Party Liability, Bodily Injury to or Death of Any Person or Damage to Property of Others Not in the Care, Custody or Control of the Insured, of the Policy to which this Endorsement is attached is amended to read as follows:

1. For any liability assumed by any person insured by this policy voluntarily under any contract or agreement other than those stated below:

Date(s) of Contract(s) Name(s) of other contracting party or parties:

Blanket Written Contracts

Except as otherwise provided in this endorsement, all limits, terms, conditions, provisions, definitions and exclusions of the policy shall have full force and effect.

EXCLUDING LONG TERM LEASED VEHICLE ENDORSEMENT (FOR ATTACHMENT ONLY TO A NON-OWNED AUTOMOBILE POLICY)

In consideration of the premium for which this Policy is issued, it is understood and agreed that Item 3. (Hired Automobiles Defined) of General Provisions and Definitions of the Policy to which the Endorsement is attached is hereby amended to read as follows:

The term "Hired Automobiles" as used in this policy means:

- a. automobiles hired or leased from others with drivers; or
- b. hired or leased by the Named Insured from others without driver for periods not exceeding 30 days, used under the control of the Insured in the business in Item 3 of the application but shall not include any automobile owned in whole or in part by or licensed in the name of the Insured or any partner, officer or employee of the Insured.

Except as otherwise provided in this endorsement, all limits, terms, conditions, provisions, definitions and exclusions to the policy shall have full force and effect.

PRIVACY BREACH EXPENSE FORM

Various provisions in this policy restrict coverage. Read the entire form carefully to determine rights, duties and what is and is not covered.

This form applies to all locations insured under the policy and is subject to the terms, conditions, limitations and exclusions that are applicable to the policy to which this attaches.

Coverage A - Privacy Breach Expenses

The Insurer will indemnify the "insured" for "privacy breach expenses" incurred during the coverage period by the "insured", or on the "insured's" behalf, and with the Insurer's prior consent, in order to:

- i. comply with any “privacy law” requirements for responding to an actual or alleged “privacy breach event”; or
- ii. minimize any potential long-term damage to the “insured’s” brand or reputation likely to result from an actual “privacy breach event”.

Coverage B - Business Interruption

The Insurer will indemnify the “insured” for “business interruption losses and extra expenses” incurred by the “insured” that directly results from the necessary interruption of the “insured’s” business, caused by a “privacy breach event”, which lasts more than 24 consecutive hours.

This Coverage B - Business Interruption will not apply to “business interruption losses and extra expenses” incurred by the “insured” after the earliest of:

- i. The date and time that the “insured’s” business resumes “normal operations” or would have resumed “normal operations” if the “insured” had exercised due diligence and dispatch; or
- ii. 60 days after the date and time that the “privacy breach event” is discovered by the “insured”.

Conditions

All “privacy breach expenses” and “business interruption losses and extra expenses” arising from or related to a “privacy breach event” shall be deemed to be incurred in the same coverage period as that “privacy breach event” is discovered by the “insured”, and must be claimed within one year of the date that “privacy breach event” is discovered by the “insured”.

This insurance only applies to “privacy breach expenses” and “business interruption losses and extra expenses” arising from or related to a “privacy breach event” first discovered by the “insured” during the coverage period.

The Insurer is not liable for “privacy breach expenses” or “business interruption losses and extra expenses” which arise from or are related to a “privacy breach event” that was not discovered by the “insured” during the coverage period and reported to the Insurer during the coverage period.

The “insured” shall with due diligence do and concur in doing and permit to be done all things which may be reasonably practicable to minimize, avoid or diminish any “privacy breach expenses” or “business interruption losses and extra expenses”.

Limit of Insurance

The Limit of Insurance shown for this form on the “Certificate of Insurance” is the maximum aggregate amount the Insurer will pay in a single coverage period in total for all “privacy breach expenses” and “business interruption losses and extra expenses” covered under this form, regardless as to the number of “privacy breach events”, locations, “insured” or the individuals whose “protected personal information” was or may have been impacted by “privacy breach events”.

No deductible is applicable to Coverage A - Privacy Breach Expenses or Coverage B - Business Interruption.

Who is an “Insured”

All of the following are included as an “insured” under this form:

- a. The “named insured”;
- b. Any subsidiary of the “named insured” but only with respect to “privacy breach event”, “privacy breach expenses”, or “business interruption losses and extra expenses” taking place while a subsidiary;
- c. If the “named insured” is:
 - i. An individual, “insured” includes the “named insured’s” spouse, but only with respect to the conduct of a business of which the “named insured” is the sole owner;

- ii. A partnership, joint venture, limited liability partnership or limited liability company, “insured” includes the “named insured’s” members, partners, principals, stockholders or owners thereof and their spouses, but only with respect to the conduct of the “named insured’s” partnership, joint venture, limited liability partnership or limited liability company business and only while acting in their capacity as such;
- iii. A business corporation, “insured” includes:
 - 1. The “named insured’s” or its subsidiaries’ present or past employees but only with respect to the conduct of the “named insured’s” or its subsidiaries’ business and only while acting within the scope of their duties as such;
 - 2. The “named insured’s” or its subsidiaries’ present or past officers and directors (whether elected, appointed, or de facto) but only with respect to the conduct of the “named insured’s” or its subsidiaries’ business and only while acting within the scope of their duties as such; and
 - 3. The “named insured’s” or its subsidiaries’ shareholders but only with respect to their liability as shareholders.

Definitions

All words and phrases in this form appearing in quotes shall have the meaning ascribed to such terms below. Defined words and phrases stated in the singular shall include the plural and vice versa.

- i. **“Business Interruption Losses and Extra Expenses”**: means the amount of “net income” which the “insured” does not earn as a direct result of the necessary interruption of the “insured’s” business, but which the “insured” would have earned had the “insured’s” business not been interrupted by a “privacy breach event”; and extra expenses incurred by the “insured”, with the Insurer’s prior approval, which are necessary for the sole purpose of reducing such loss of “net income”, provided such extra expenses would not have otherwise been incurred by the “insured” had the “privacy breach event” not occurred.
- ii. **“Computer System”**: means computer hardware, software, firmware, and components thereof, including electronic data stored thereon, which are linked together through a network of two or more computers, including such networks accessible through the Internet, intranets, extranets or virtual private networks. For greater clarity, “computer system” includes cloud-based computer hardware, software, firmware, and components thereof, including electronic data stored thereon.
- iii. **“Cyber Operation”**: means the use of a “computer system” by, at the direction of, or under the control of a “state” to:
 - a. Disrupt, deny access to, or degrade functionality of a “computer system”; or
 - b. copy, remove, manipulate, deny access to, or destroy information in a “computer system”.
- iv. **“Cyberterrorism”**: means any actual, alleged or threatened attack perpetuated electronically by any person or group, whether acting alone or on behalf of, or in connection with any organization or government, committed for political, religious, social, ideological or similar purposes, or with the apparent intention to cause harm or to intimidate any person or entity in furtherance of such objectives, which results in total or partial interruption, degradation in service or failure of the “computer system” of the “insured” or of an “outside service provider” who operates or maintains a “computer system” on behalf of the “insured”.
- v. **“Denial of Service Attack”**: means an attack that sends an excessive volume of electronic data to a “computer system” in order to deplete such “computer system’s” capacity, and prevents authorized users from gaining access to such “computer system” in a manner in which they are legally entitled, provided such depletion of capacity is not caused by a mistake in determining capacity needs.

- vi. **"Essential Service"**: means a service that is essential for the maintenance of vital functions of a "state" including but not limited to financial institutions and associated financial market infrastructure, health services or utility services.
- vii. **"External Party"**: means any person or entity which is not an "insured" or the Insurer.
- viii. **"Insured(s)"**: any person listed or described in the Who is an "Insured" section of this form.
- ix. **"Malicious Code"**: means an unauthorized corrupting or harmful piece of code, including, but not limited to, computer viruses, Trojan horses, worms, time or logic bombs, spyware, malware or spider ware.
- x. **"Named Insured(s)"**: the person(s) identified as such in the "Certificate of Insurance" Page.
- xi. **"Normal Operations"**: means the business activities usually attended to by the "insured" to a level of revenues comparable to the same period the previous years.
- xii. **"Net Income"**: means the net income of the "insured" determined in accordance with accounting principles consistently applied from year to year employed under the method of accounting adopted by the "insured".
- xiii. **"Outside Service Provider"** : a third party independent contractor that provides information technology or business process outsourcing services for the "insured's" benefit under written contract with the "insured". Such services include but are not limited to data hosting, security management, co-location, data storage, data backup, data processing, cloud services or computing, call centre services, fulfilment services, and logistical support.
- xiv. **"PIPEDA"** means the Personal Information Protection and Electronic Documents Act (Canada), SC 2000, c 5, as amended.
- xv. **"Privacy Breach Expenses"**: means the following expenses incurred by the "insured", or on the "insured's" behalf:
 - a. **Notification expenses**: necessary expenses incurred to provide notice to an identified individual of any actual or potential unauthorized disclosure of, or use of or access to "protected personal information" as a result of a "privacy breach event";
 - b. **Credit monitoring**: costs incurred to provide credit monitoring expenses to an identified individual whose "protected personal information" was or may have been subject to unauthorized disclosure of, or use of or access to as a result of a "privacy breach event";
 - c. **Data recovery expenses**: costs incurred to recover "protected personal information" which has been damaged or lost, while in the possession or control of the "insured", as a result of a "privacy breach event";
 - d. **Cyber investigation expenses**: costs incurred to pay an "external party" to conduct an investigation into a reported instance of unauthorized access to or use of a "computer system" to determine how and when the "computer system" was compromised in relation to a "privacy breach event". Such costs do not include compensation, fees, benefits, overhead or the charges or expenses of any "insured";
 - e. **Crisis management expenses**: costs incurred to pay a public relations firm, law firm or crisis management firm to perform crisis management services to minimize the potential harm to the "insured's" reputation or business arising from a "privacy breach event". Such costs do not include compensation, fees, benefits, overhead or the charges or expenses of any "insured"; and
 - f. **Legal defence expenses**: costs incurred solely for the defence of a claim against the "insured" seeking compensatory damages as a direct result of a "privacy breach event".

- xvi. **“Privacy Breach Event”**: means any actual or alleged unauthorized (i) access to, (ii) use of, and/or (iii) disclosure of, “protected personal information” in the care, custody or control of the “insured”, which as a result of, the “insured”:
- is required by “privacy law” to report such breach to a Federal or Provincial Privacy Commissioner, or similar official in a foreign jurisdiction, or
 - would have been required by “PIPEDA” to report such breach to the Federal Privacy Commissioner but for the application of a provincial privacy act, which has been deemed by the Government of Canada to be substantially similar to “PIPEDA”.
- xvii. **“Privacy Law”**: means the laws governing the protection, use or disclosure of personal information and includes “PIPEDA”.
- xviii. **“Protected Personal Information”**: means any information about an identifiable individual protected from unauthorized access, use or disclosure under any “privacy law”.
- xix. **“Security”**: means any hardware, software, firmware or physical barriers with a function or purpose to mitigate loss from, or prevent unauthorized access to, or unauthorized use of, or receipt or transmission of a “malicious code” by, or “denial of service attacks” to or from a “computer system”, or to restrict unauthorized access to premises where “protected personal information” is stored. “Security” includes, without limitation, locks, alarms, firewalls, filters, computer virus protection software, intrusion detection, the electronic use of passwords or similar identification of authorized users. “Security” also includes efforts to prevent theft of a password or access code by non-electronic means.
- xx. **“Security Failure”**:
- A failure or inability of the “security” of the “insured’s” “computer system” to prevent unauthorized access to or unauthorized use of such “computer system”;
 - A “denial of service attack” or the receipt or transmission of a “malicious code” by the “insured’s” “computer system”;
 - A failure or inability to prevent the physical theft of “protected personal information” entrusted to the “insured” that is stored by or in the possession or control of the “insured”; or
 - Any of the above resulting from the theft of a password or access code which results from the failure to take reasonable efforts to secure passwords and access codes from theft by non-electronic means.
- xxi. **“State”**: means sovereign state.
- xxii. **“War”**: means armed conflict involving physical force:
- By a “state” against another “state”, or
 - As part of a civil war, rebellion, revolution, insurrection, terrorism, martial law, confiscation by order of any government or public authority, military action or usurpation of power, whether war be declared or not.

Exclusions

- This form does not apply to any “privacy breach event”, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving, attributable or related, in whole or in part, to:
 - Dishonest Acts**
 - Any actual or alleged dishonest, fraudulent, criminal or malicious act or wilful error or omission committed by any “named insured”. This exclusion applies to all “insureds” whether or not they had

consent or knowledge if the dishonest act is done by, or with the consent or knowledge, of any “named insured”.

2. Any actual or alleged dishonest, fraudulent, criminal or malicious act or wilful error or omission committed by any “insured” other than a “named insured”. Paragraph 2. of this exclusion i.a. does not apply to any “insured” that did not participate in or know about the dishonest act.

b. Prior Breaches

Prior “privacy breach events” known by the “insured” prior to the start of the coverage period.

c. Security Inadequacy

1. Any “security failure” occurring prior to the start of the coverage period if the “insured” knew or could have reasonably foreseen that this “security failure” could give rise to any “privacy breach expenses” or “business interruption losses and extra expenses”;
2. Any shortcoming in “security” that the “insured” knew about and for which corrective actions were not started within a reasonable delay prior to the “privacy breach event” occurring;
3. Any failure to ensure that any “computer system” used by the “insured” is protected by “security” practices and system maintenance procedures that are equal to or better than those commercially and readily available;
4. The “insured’s” failure to take steps to use, maintain or upgrade the “security”, including but not limited to running tests to identify possible “malicious code”, at a minimum on a monthly basis, and maintaining a firewall to protect its “computer system”;
5. The “insured’s” failure to, at a minimum on a monthly basis, use, maintain and test a backup system that creates archives and restore points of the “insured’s” “computer system”; or
6. The use of, or lack of performance of, software:
 - i. Due to its expiration, cancellation or withdrawal;
 - ii. That has not been updated to the latest version within a month of each update’s release;
 - iii. That has not yet been released from its developmental state;
 - iv. That has not been specifically authorized by the “insured”; or
 - v. That has not passed all test runs or proven successful in applicable daily operations.

d. War and Cyber Operation

1. “War”;
2. A “cyber operation” that is carried out as part of a “war”, or the immediate preparation for a “war”; or
3. A “cyber operation” that causes a major detrimental impact on:
 - i. The functioning of a “state” due to disruption to the availability, integrity or delivery of an “essential service” in that “state”; or
 - ii. The security or defence of a “state”.

However, this exclusion shall not apply to an act of “cyberterrorism” that is not carried out as a part of a “war” or “cyber operation”.

- ii. The Insurer will not be liable for that portion of a claim for “privacy breach expenses” or “business interruption losses and extra expenses” which are costs, expenses or losses incurred or payments arising out of, directly or indirectly resulting from, or in any way involving, attributable or related, in whole or in part to:

a. Expense Related to Other Information

Loss of information other than “protected personal information” in the care, custody or control of the “insured”.

b. Extortion Threat

Ransom payments or costs related to the payment of ransom including but not limited to the costs of security assistance, no matter the form of the extortion or blackmail.

c. Fines and Penalties

Assessments, fines, penalties, taxes, sanctions or other cost recovery mechanisms of payment card companies including but not limited to counterfeit card recovery costs, operating expense recovery costs, and assessments and/or disqualification for noncompliance.

d. Government Authority

Seizure, confiscation, nationalization, or destruction of the “insured’s” “computer system” by order of any government or public authority.

e. Wear and Tear

Wear and tear or gradual deterioration of any “computer system” of the “insured” or of an “external party” who operates or maintains a “computer system” on behalf of the “insured”.

f. Improvements

Update, restore, replace or otherwise improve any “computer system” to the level of functionality beyond that which existed prior to the discovery of the “privacy breach event” by the “insured” or to repair “computer system” errors or vulnerabilities caused by or identified as a result of a “privacy breach event”.

g. Liability

A claim made against the “insured”, and the defence costs and liability arising therefrom, except as described in item f of the “privacy breach expenses” definition.

Notice of Claims

As a condition precedent to coverage, the “insured” shall give immediate notice in writing to the Insurer of any “privacy breach event” for which the “insured” seeks coverage under this form. Within sixty (60) days of the “privacy breach event” being discovered by the “insured”, the “insured” shall, to the best of its ability, provide the following information in writing to the Insurer:

- i. The circumstances by which the “insured” first became aware of the specific “privacy breach events”;
- ii. The nature of the potential expenses that may arise from such specific “privacy breach events”; and
- iii. The name(s) of the potentially affected individuals and a date and description of the specific “privacy breach events”.

Co-operators Privacy Statement

At Co-operators, we recognize and respect the importance of privacy. When you apply for insurance or open an account with us, we will ask for your consent to collect, use, keep and share your personal information. We will explain what information we need, what we will use it for and who we will share it with. We will open a confidential file to collect, use, keep and share your personal information for the purposes of confirming your identity, reviewing your insurance needs and determining suitability of our products and services for you, assessing your application for insurance, issuing and administering your policy, including assessing and processing claims, administering your investments, meeting our contractual and regulatory obligations, detecting and preventing fraud, and performing business and statistical analysis. We will not share your personal information for other purposes, except with your consent or as required or permitted by law.

We may tell you about products and services that may be of interest to you. You can tell us what information you want to receive from us and you can withdraw your consent at any time. You may access and correct, if needed, the personal information in your file by sending us a request in writing.

We limit access to your personal information to our staff and other people we have authorized who need to use it to perform their duties. This may include our third-party service providers who may use your personal information for processing, storage, analysis and disaster recovery purposes outside of your province of residence or Canada. They could be required by law to give your personal information to courts, governments or regulators outside of Canada. To protect your personal information, we ensure that privacy and security requirements are included in all third-party service provider contracts.

You can find more details about our privacy policy and how to contact our Privacy Officer at www.cooperators.ca/privacy.

Disclosure of Compensation - 2025

The Co-operators' mission - to provide financial security for Canadians and their communities - begins and ends with you, our client. We aim to understand and anticipate your insurance needs and build long lasting relationships with you.

We believe that our ability to meet your needs and expectations is impacted by your perception and level of understanding of insurance, insurance-related issues, and Co-operators as an organization. Therefore, we feel it is important to disclose how our insurance agents are paid and any financial arrangements they may have with Co-operators.

Agent Compensation

Co-operators General Insurance Company (CGIC) writes much of its business through its network of dedicated insurance agents and representatives. Our insurance agents have exclusive distribution agreements with Co-operators. Through this exclusive agreement our agents and representatives can provide services to Co-operator's customers and offer a full range of Co-operators products. Co-operators is responsible for overseeing all aspects of the distribution process.

Our insurance agents' compensation is part of your insurance premium. A percentage of your premium is paid annually to agents for generating new business, servicing your account, and securing subsequent renewals. For your information, we have listed the property and casualty commission rates paid to our Co-operators agents below:

Product	Base Commission	Contingent Commission	Total Commission
Auto Insurance*	6.1% - 9%	0 - 0.7%	6.1% - 9.7%
Home Insurance*	8.5% - 10%	0 - 3% or 0 - 6%	8.5% - 16%
Business Insurance*	8.75% - 13.5%	0 - 4.5% or 0 - 10%	8.75% - 20%
Farm Insurance*	8.9% - 13.5%	0 - 4.5% or 0 - 10%	8.9% - 20%

* Only the % set out in the first column applies to Quebec representative. For example, for base commission, a star would be for the 7.0%; contingent commission 0 - 0.7%

Our insurance agents have exclusive distribution agreements with Co-operators. Where Co-operators does not offer coverage, in certain limited circumstances and in accordance with applicable laws, our agents can place risk through specific insurance providers. As Co-operators agents, they may receive sales commission as outlined below:

Providers	Applicable Provinces and Territories	Comments
Eagle	NS, NB, NL, PE	Commercial watercraft business, commission of 13%.
Facility Association	YT, NU, NT, AB, ON, NS, NB, PE and NL	Used in certain markets when business does not meet the underwriting requirement for CGIC. Various rates based on product applies.
Federated Property & Casualty	All (except ON and QC)	Personal and commercial lines business placed with external markets, commission 5.6%.
Insure BC	BC only	Earthquake deductible buyback coverage, commission 5%.
PAL (Party Alcohol Liability)	All (except ON & QC)	Single use insurance with a 10% commission.
Pool Auto	AB, NB, NS, ON	Pooling tool utilized by Co-operators with commissions of 6% - 8%.
Premier Group	All provinces and territories	Used for all types excluding Commercial Auto (commission is 13% - 23%) and for Commercial Auto (commission is 6.5% - 8.5%) serviced by Co-operators.
Reliance Glass	BC only	Glass coverage, commission of 10% - 12.5%.

Contingent Commission

Payment of contingent commissions may be based on profitability and quality of the insurance agent's portfolio. Combined, these measures contribute to our overall strength as a company and enhance service to clients. These incentives are not guaranteed and depend on superior agency performance.

Corporate Compensation - Quebec Only

In addition to exclusive insurance agents, Quebec uses a network of corporate representatives to sell auto, home, business, and farm insurance. They are paid a fee or percentage (depending on the product) for generating new business in addition to receiving a base salary. For your information, we have listed the rates below:

Product	Fee/Percentage
Personal Auto Insurance	\$0 - \$40 per item
Commercial Auto Insurance	10%

Product	Fee/Percentage
Home Insurance	\$0 - \$40 per policy
Business & Farm Insurance	22% - 25%

Ownership and Loans (does not apply to Quebec representatives)

Through an agent's exclusive agreement with Co-operators, they have the right to provide service to Co-operators clients. Our insurance agents may receive assistance from Co-operators related to the establishment of their business, but they are responsible for their own operating expenses such as office space, office supplies etc.

Other Forms of Compensation

If sales reach a certain level, an agent may be eligible for additional compensation, such as bonuses, and other benefits such as the opportunity to attend conferences for additional training.

Questions

If you have any questions about the Information provided please contact your Co-operators insurance agent.

Code of Consumer Rights and Responsibilities

The Code of Consumer Rights and Responsibilities provided by The Insurance Bureau of Canada is available for review on their website. Please visit IBC.ca for additional information.

We will refund the unused portion of any prepaid premium on a pro rata basis, unless you could or have purchased insurance from another insurance company, in which case, the refund will be made based on the short rate cancellation table shown below.

Percentage of time in force	Percentage retained	Percentage of time in force	Percentage retained	Percentage of time in force	Percentage retained
0	12%	34	43%	68	74%
1	13%	35	44%	69	75%
2	14%	36	45%	70	76%
3	14%	37	45%	71	76%
4	15%	38	46%	72	77%
5	16%	39	47%	73	78%
6	17%	40	48%	74	79%
7	18%	41	49%	75	80%
8	19%	42	50%	76	81%
9	20%	43	51%	77	83%
10	21%	44	52%	78	83%
11	22%	45	53%	79	84%
12	23%	46	54%	80	85%
13	24%	47	55%	81	86%
14	24%	48	56%	82	87%
15	25%	49	56%	83	87%
16	26%	50	57%	84	88%
17	27%	51	58%	85	89%
18	28%	52	59%	86	90%
19	29%	53	60%	87	91%
20	30%	54	61%	88	92%
21	31%	55	62%	89	93%
22	32%	56	63%	90	94%
23	33%	57	64%	91	95%
24	34%	58	65%	92	96%
25	35%	59	66%	93	97%
26	35%	60	66%	94	97%
27	36%	61	67%	95	98%
28	37%	62	68%	96	99%
29	38%	63	69%	97	100%
30	39%	64	70%	98	100%
31	40%	65	71%	99	100%
32	41%	66	72%	100	100%
33	42%	67	73%		